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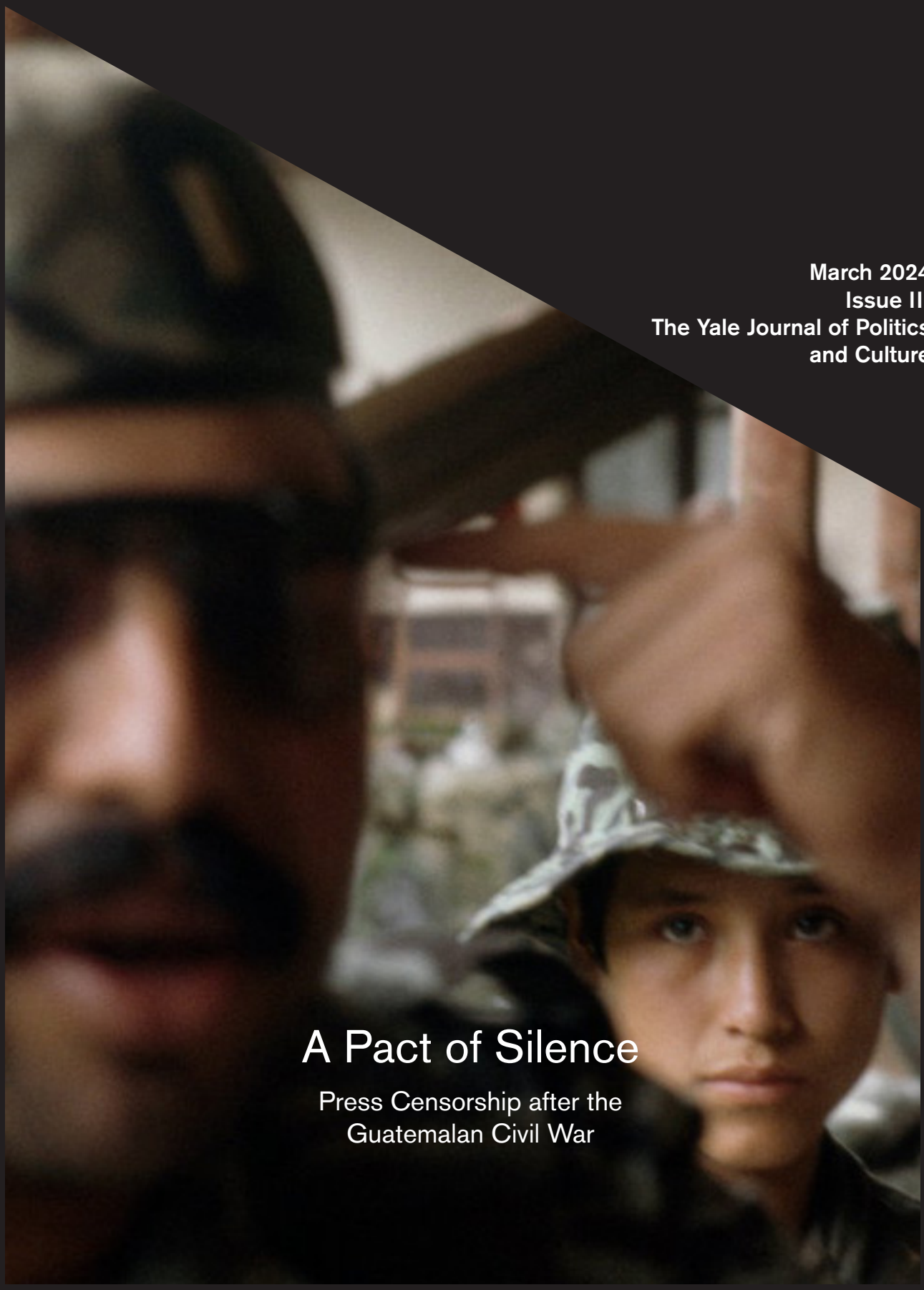

A Pact of Silence

Press Censorship after the
Guatemalan Civil War

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LETTER FROM THE EDITORS

Dear readers,

Welcome to the final issue of the 2023-2024 Managing Board! Running this magazine for the past year has been one of the highest privileges of our time at Yale. During our tenure, we've helped guide and edit in-depth reporting on diverse and challenging topics, from New Haven bus surveillance to illiberal governance in Poland and everything in between. Our board began including a photojournalism essay in every print issue, along with continuing to publish interviews with notables in media, culture, and politics. We've invested in the magazine's multimedia arm, refurbished the website, and strengthened our graphic design. And most importantly, we've had the opportunity to meet and collaborate with a brilliant group of writers, reporters, and artists who have continuously inspired us with their talent, dedication, and creativity.

The theme of our ultimate issue is turning points. Inside, our writers' pieces examine crucial inflections in issues of local, national, and international importance. Our cover story, "A Pact of Silence," sees Eliza Daunt tracking the fallout of the Guatemalan Civil War, which transformed the country's relationship with the free press as newspapers were muzzled and journalists targeted by government surveillance. In "Cutting Ties," Lily Belle Poling reports on how the strained U.S.-China relationship is unraveling educational ties between the two powers. And Sylvan Lebrun, in "Paving the Road," analyzes how Yale has bought campus-adjacent property from New Haven to aesthetically transform the city into an extension of the university.

In "California's Caste Question," Vittal Sivakumar writes about the debates within the Golden State's South Asian American community over an anti-caste discrimination bill—a bill that Governor Gavin Newson vetoed last year. Theo Sotoodenhia also reports on politics, this time in Montana, where a Democrat is aiming to defeat the Republican incumbent governor. This Democrat's record is different than most, though, and Sotoodehnia dives into his push to wrestle control from the Montana G.O.P. Alexia Dochnal zooms out from state politics and takes us to Poland in her piece, "The Quest to Restore the Rule of Law in Poland." Dochnal examines how last year's parliamentary elections in Poland might signal a turning point for the nation, as the nation's new leader seeks to rectify the antidemocratic policies of his predecessors.

This issue's interview is with Martine Powers, host of the Washington Post's daily news podcast, who spoke to managing editors Kate Reynolds and Leonie Wisowaty about multimedia reporting in the age of digital journalism. And finally, in Issue III's photo essay, "Demanding Change," Yash Roy documents protests from New Haven and Yale over the past year, presenting us with stunning visuals of collectives calling for political overhaul.

Again, it's been a joy to run *The Politic* over the past year—we hope you enjoy reading it as much as we've delighted in putting it together, one last time.

With love,
The 2023-2024 Managing Board

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Cutting Ties:

The Unraveling of Partnerships between American and Chinese Universities

BY **LILY BELLE POLING**

IN JANUARY 2024, Florida International University (FIU) arrived at the final step of a long partnership. The school terminated several of its successful partnerships with Chinese universities, including a Spanish language program, engineering programs, and a dual-degree hospitality program. FIU's decision to cut its relationships with Chinese institutions of higher learning came in the wake of mandates by the Florida Board of Governors—the board that oversees Florida's public university system—to increase oversight of university partnerships with seven countries of concern, including China.

For the last few decades, it has been commonplace to hear of American students crossing the Pacific to further their academics abroad. But as the political climate between the U.S. and China grows more tense, the future of these academic ventures is becoming increasingly uncertain.

In August 2024, Andrew DeWeese '24 will be moving to China to pursue a one-year master's degree in Global Affairs at Beijing's Tsinghua University. For DeWeese, who has always been interested in politics and international relations, studying in China is essential to broadening his knowledge and experience.

"I realized that there's this whole half of the world that I didn't understand," said DeWeese.

During his time at Yale, he has studied Mandarin, as well as Chinese history, politics, and society.

DeWeese, who is also interested in foreign policy, has spent time working as a strategy analyst in D.C. There, he noticed a disconnect in attitudes toward China between D.C. foreign policy circles and those who study China in academia.

"I just think we need more people who study China and are involved in national security to actually go there and better understand the country," DeWeese told *The Politic*. "I've wanted to be a kind of bridge between the national security world and China."

DeWeese will land in Beijing as a member of the newest cohort of Schwarzman Scholars, a program created in 2016 to offer future leaders an immersive understanding of China and its culture. The fully-funded master's program places emphasis on cross-cultural understanding, which is why its cohorts are designed to be roughly 40% American students, 20% Chinese students, and 40% students from other countries. The Schwarzman Scholars website proudly features founding trustee Stephen Schwarzman's famous quote: "Those who will lead the future must understand China today."

According to DeWeese, the cohort of scholars is more than just people who are involved with foreign policy. It's comprised of people "who are professionals in their fields who think that they need to understand China to advance that view," he said. The program brings people from across industries—from professional athletes to entrepreneurs to a founder of a pharmaceutical company—to learn about China.

While the Schwarzman Scholars program was established only eight years ago, American scholarly partnerships with China have a long history. Some universities, including Duke and New York University (NYU), have four-year, degree-granting campuses in China established in conjunction with Chinese universities (Duke Kunshan University, NYU Shanghai). These institutions were established with similar goals of global citizenship and cross-cultural understanding. Chinese graduate scholarship programs similar to Schwarzman Scholars, such as the Yenching Scholars program at Peking University, also provide scholars from around the world full scholarships for a two-years master's degree of broad, interdisciplinary scope that reflects global perspectives.

There have also been Chinese initiatives in the United States that

offer Chinese language and cultural instruction. For example, in 2004, the Chinese International Education Foundation—an offshoot of the Chinese Ministry of Education—established several "Confucius Institutes" with the purpose of promoting Chinese language and culture. By 2017, there were 525 Confucius Institutes at colleges and universities across 146 countries, as well as 1,113 Confucius classrooms at primary and secondary schools. However, due to concern that Confucius Institutes perpetuated Chinese influence, then-President Donald Trump signed a defense bill into law in 2018 that restricted funding for Chinese language study to schools that offered Confucius Institutes. By June 2022, 104 of 118 Confucius Institutes in the U.S. were shut down.

The suspicion towards and subsequent closing of Confucius Institutes reflects a broader trend in American-Chinese academic partnerships: academic institutions must continually reevaluate how to maintain ties amidst a tense and ever changing relationship between the United States and China.

Michael Szonyi, the Frank Wen-Hsiung Wu Memorial Professor of Chinese History at Harvard, spent the Fall 2023 semester as a visiting professor at Xiamen University in Xiamen, Fujian, China. Szonyi noted that beyond his academic duties, there was a political dimension to his visit.

"I thought it was important to convey to Chinese colleagues that American scholars like myself are still committed to collaborating with them and engaging with them despite the deteriorating broader bilateral relationship," Szonyi said in a webinar hosted by the University of California, Irvine Long US-China Institute on January 30th.

Sznoyi also emphasized in the webinar that despite negative media coverage of the academic exchange climate in China, he had a positive experience—ranking it as "one of the intellectual high points" of his career. However, Szonyi was quick to remind the audience that studying in China carries some inherent challenges. He mentioned that his experience was tinged by the limitations placed upon his talks by university officials, who often restricted "sensitive" topics, such as discussion of Xinjiang or Tibet. Experiences like these are representative of the larger concerns around academic freedom foreigners are now facing as scholars in China.

The United States government has also warned citizens about risks of traveling to China. In July 2023, an official advisory recommended Americans reconsider traveling to China due to risks of exit bans and wrongful detentions. The Overseas Security Advisory Council even published a pamphlet specifically for students warning them of arbitrary legal enforcement, lack of privacy, and potential for exploitation and blackmail.

The risks to American students studying and working in China are indeed serious: in 2020, Alyssa Petersen, the American director of teaching exchange program China Horizons, was arrested and detained in a Chinese jail outside Shanghai. She and her employer Jacob Harlan were accused of "illegally moving people across borders."

The exchange program China Horizons, which for 17 years had brought American students to China to teach English, closed after the arrests, citing "increasing political and economic problems between the U.S. and China." After considerable political and public mobilization, the case was taken up by the Congressional-Executive Commission on China, which called the arrests "arbitrary" and noted that they coincided with the detention of a Chinese official in the US on visa fraud charges. Petersen was found not guilty and returned to the United States in 2022 after two years in prison. Harlan remains in detention in China.

FIU is not the only institution that has recently removed China-based programs. In 2021, *the Harvard Crimson* reported that Harvard Beijing Academy—the school's Chinese summer study abroad program—would be moving to Taipei "due to a perceived lack of friendliness from the host institution, Beijing Language and Culture University."

As university partnerships become increasingly politically oriented and risky, some observers feel that universities will be more wary of investing in China. Liam Knox, an admissions and enrollment reporter with *Inside Higher Ed*, told *The Politic* that during his conversations with Duke University president Vincent Price, Price spoke about the future of Duke's academic partnership with Wuhan University. When the time comes to renew its partnership in 2027, "Duke will have to take a look at it to be 'clear-eyed' about the future," Knox recalls Price saying. Knox believes this is a common sentiment among many university leaders now that the stakes of partnering with China are higher due to greater political scrutiny and complications with academic freedom.

In recent years, universities have faced significant scrutiny from American politicians about their partnerships with China. Florida Governor Ron DeSantis '01 has restricted all state colleges and universities from partnering with universities based in China, unless approved by the state's Board of Governors or the Board of Education. "The Chinese Communist Party is not welcome in the state of Florida," he said in a statement justifying his educational reforms. In 2022, Senator Marco Rubio (R-FL) called for 22 universities to end their partnerships with Chinese universities, arguing that these partnerships sustain Chinese attempts to steal technology for the development of military technologies.

While many view this scrutinization as baseless, in recent years, we have seen examples of China meddling in American universities' affairs. Dr. Charles Lieber, former chair of Harvard's Chemistry and Chemical Biology department, was sentenced to two days in prison in 2023 for falsely denying his participation in China's Thousand Talents Plan and Wuhan University of Technology (WUT). The

Thousand Talents Plan, which contractually paid Lieber for his efforts, sought to recruit advanced scientists to China to further their scientific development, economic prosperity, and national security. Lieber also failed to report the income he was receiving from WUT as one of their "Strategic Scientists." Situations like these, in which the Chinese government tries to exploit American universities and their officials, cause politicians and administrative officials to be wary of continuing their partnerships with China.

In fact, despite the closing of partnerships such as the Confucius Institutes, China still holds influence on many American campuses. China still actively coordinates and communicates with Chinese Students and Scholars Associations (CSSA), which were created by the Chinese Communist Party in the late 1970s to monitor Chinese students and mobilize them against views that criticize China. Many CSSA chapters only accept Chinese citizens and are provided funding and guidance from the Chinese government. While the initiative is relatively small today, there are roughly 150 CSSAs scattered around American college campuses, according to the U.S. State Department. This demonstrates how China's attempts to influence American universities have not always followed a spirit of cooperation.

Even the Schwarzman Scholars program has gained attention from critics about the involvement of the CCP in its administration. As one of few educational initiatives in China without a partner American institution, this program is uniquely vulnerable to influence from the CCP. The Schwarzman Scholars program is tied to the U.S. solely through its founder, Stephen Schwarzman, who has billions of dollars worth of business dealings in China. Top officials from the United Front, the CCP's body responsible for establishing ideological sway, have been involved with the administration of Schwarzman Scholars and have praised members of the program's administration, such as founding dean David Daokui Li.

Partnerships between universities have not always been such a point of contention. In fact, these partnerships were once seen as exciting new territory for growth in the academic exchange between the East and West.

"The balloon time for these partnerships was the 2000s, early 2010s, all the way through the end of the Obama administration," Liam Knox, an admissions and enrollment reporter for *Inside Higher Ed*, told *The Politic*. According to Knox, partnerships between institutions helped to bridge the cultural worlds of the U.S. and China and served as a symbol of improving Sino-American relations.

However, relations between the United States and China declined with the Trump presidency and the ensuing trade war, further exacerbated by the COVID-19 pandemic. In 2021, Secretary of State Antony Blinken said that managing the United States' relationship with China would be "the biggest geopolitical test of the 21st century." As the relationship grew tense, academic exchange suffered the consequences with fewer than 400 American students in China in October 2022—approximately 80% down from pre-pandemic numbers.

"The isolationist tendencies are coming back, especially in terms of academic research and research that could have national security or economic competitiveness implications," Knox said. Even seemingly harmless programs are being shut down due to the cold political situation. Knox points to the closure of the FIU hospitality program, which is unrelated to national security or technological competition, as an example.

Ostensibly, there is support and funding from Beijing for continuing and expanding academic partnerships. In his recent November 2023 visit to San Francisco, Chinese President Xi Jinping announced that China was ready to welcome 50,000 Americans in the next five years for exchange and study programs. In January 2024, Xi personally invited students and staff from Muscatine, Iowa, to come to China on an all-expenses paid trip. Some critics feel that Xi's overt display of friendliness to the United States is an effort to protect the Chinese economy. As relations sour, many American companies have been withdrawing operations from China, an economic loss some say China is looking to repair.

That being said, many American institutions also seem eager to reinstate what was lost during the pandemic with returns to in-person university programs in China. "I think that in the short term, and especially for language study, lots of funding bodies are recognizing the need to undo the damage that the COVID pandemic caused on younger scholars," said Szonyi.

But Szonyi predicts that within the U.S., students will experience changes in how they are encouraged to study China. "I expect that it's going to be in the long run easier and easier to study China as a security threat to the United States—that there will be funding available for that—and harder and harder to study China as an interesting example in the history of museums or in the history of revolutions or in the history of health, and so on."

Andrew DeWeese, whose interests lie in foreign policy and national security, may represent the growing body of scholars Szonyi predicted. As DeWeese approaches his year in Beijing, he is apprehensive about being caught up in the political tension. "When you're a citizen of a state that a repressive state doesn't like, you can always get caught up in something bigger than yourself," he said. "When tensions between the two governments sour, people like us become easy to blame."

PAVING THE ROAD

How Yale is Making New Haven into a College Campus, Street by Street

BY **SYLVAN LEBRUN**

NEW HAVEN GETS AN EXTRA $52 million, and Yale gets to close a single block to traffic. The city's mayor and the university's president shook hands on these terms in November of 2021, cementing a deal to significantly increase Yale's voluntary financial contribution to the city for the next six years. It had taken a year of wrangling for the agreement to make it out of the negotiating room. A quarter-mile stretch of High Street—a shady, tree-lined block with one-way traffic and nothing but dorms and academic buildings on either side—seemed to be Yale's sole upside. The street would even still technically remain under the city's ownership, as Yale only won the right to redesign it as a pedestrian walkway. Out of everything, why would Yale ask for this? And what does it reveal about the clash between urban university campuses and the streets that they occupy?

As a bargaining chip, the High Street conversion is part of a larger effort by Yale to strike deals with New Haven to pave and pedestrianize the blocks in and around its campus. A few months before the planned conversion of High Street was announced, the University finished construction on Alexander Walk, which replaced two blocks of Wall Street. "It feels like a continuous college campus, not a city," Yale's associate director of planning and construction Michael Douyard said in the announcement of the project's completion. "It went from an urban streetscape to a lush and tidy campus landscape."

Unlike Ivy League counterparts, which boast gated campuses arranged along a pastoral hillside in Princeton or elevated on a marble platform in Morningside Heights, New Haven's streets cut through Yale. Walking around Yale generally feels, as Douyard noted, like walking through a city. The University is working to change that. In interviews, New Haven politicians, local residents, and Yale architecture faculty shared their concerns about the power that Yale has to reshape the urban landscape that surrounds it, stretching the lines of campus further—and making them harder to cross.

"Those gestures send clear messages that 'this is campus, and this is not campus," said Elihu Rubin, who directs the un-

The critical position of High have put it on Yale's "wish

dergraduate urban studies program at Yale. "When you have a street that runs through it that is accessible to cars, I think that it feels a little bit more porous to a broader public…This was maybe a way of insulating the campus from the surrounding city."

Alex Guzhnay '24, a New Haven alder representing a ward that includes most of Yale's campus, is a senior at Yale himself. In high school, he visited Yale from nearby Fair Haven, a predominantly Latine neighborhood. He said he felt uncomfortable walking through the technically-public central paths of Yale's campus, wondering if he was even allowed to be there.

"Even when classes aren't in session, it's like, can I be here, do I feel comfortable being here?" Guzhnay said. "It's an unknown sort of territory. It's a different sort of environment than what I've grown up in and what other people have grown up in."

Yale has already converted two blocks of High Street nearer to the center of campus into walkways through deals struck in 1990 and 2013. In the latter case, the city packaged one block of High Street and two blocks of Wall Street into a $3 million sale to the university. Yale now has permanent control over the thoroughfares, reserving the legal right to close them to passersby not affiliated with the university, though it has not articulated any plans to do so.

The city's current mayor, Justin Elicker, voted against selling these streets to Yale while serving on the Board of Alders during the 2013 negotiations. Eight years later, he then presided over the deal that will allow Yale to pedestrianize another downtown block. In a recent interview, he said that his objections to the 2013 sale determined the parameters under which he was willing to negotiate with regard to High Street. The outright sale of public assets to Yale is "irresponsible," he said, noting that Yale's permanent ownership rights could then "potentially be used to gate off the public from the street." And $3 million was too small a sum.

Crucially, city and university officials have emphasized, this most recent deal is not like the one that came before it: New Haven is not selling the street, and Yale is not buying it. Yale will produce the design for the walkway, subject to the approval of New Haven's City Plan Commission, and will fully fund the renovations and future maintenance, but ownership over the street will be retained by the city. University President Salovey told the Yale Daily News on February 16 that construction will likely begin late in the spring of 2024.

However, Yale did initially float the idea of purchasing High Street, according to officials who were present in the negotiating room. The city then managed to talk them down.

Once the negotiations for the 2021 deal began, Yale expressed an interest in closing High Street and converting it into a walkway—a request that not even the mayor had heard prior. "I made clear that selling the street was a red line that we would not cross," Elicker said.

Henry Fernandez, who was the city's lead negotiator during the proceedings, said that after the city set a hard limit against a permanent purchase, Yale "negotiated in good faith," leading to the final compromise that was able to pass unanimously through the Board of Alders. Yale assented to High Street remaining a public asset "once they thought about it, and understood why it mattered to the city," Fernandez said.

Yale's Office of New Haven Affairs confirmed in an emailed statement: "As with past transactions, the university was initially interested in purchasing; however, given the strength of the overall partnership, we were happy to accept the city's novel offer to work together to create a pleasant community space."

By the time that the deal went in front of the alders, the conversion of High Street drew little controversy, said Yale alum and Ward 7 alder Eli Sabin '22. Sabin was initially surprised to hear about the change, as it had never been mentioned to him before, and some alders were concerned about the loss of revenue from parking spaces. However, the primary focus was on the funding increase, not on High Street. "It came as part of a package that saw the city getting tens of millions of dollars that we desperately need to provide services and keep property taxes down," Sabin said.

During the negotiations, Fernandez said, Yale's priorities for the High Street conversion were pedestrian safety and walkability, as well as creating the visual effect of a campus that, though urban, is "bound together."

The block of High Street that will soon be converted, between Elm Street and Chapel Street, is already quite integrated with Yale's campus. It is flanked on one side by the university's historic Old Campus complex, which houses students during their first year. On the other side sit three of the university's oldest residential colleges, the Yale University Art Gallery, and the tomb of the undergraduate secret society Skull and Bones. Other than the private tomb, Yale owns and manages every single property on the street.

At one end, High Street intersects with the commercially-focused Chapel Street. There, both Yale affiliates and New Haven residents frequent locally-owned shops and restaurants, as well as chains like Panera Bread and Starbucks. The tables in front of the Yale University Art Gallery, on the corner of Chapel and High, are a popular gathering space for local residents.

Yale's influence on urban planning extends onto Chapel Street. More than two-thirds of the businesses within a block of the High Street intersection are part of the "Shops at Yale," complexes of restaurants and stores owned by Yale University Properties. When interviewed, multiple small business owners on Chapel Street said that their employees currently make use of High Street's parking spaces—31, to be exact—in order to commute to work.

Yale architecture professor Alan Plattus described Chapel Street as "the real shared main street of Yale and the city." However, High Street thereby runs the risk of acting as a boundary. The point where High Street meets Chapel Street is literally marked with a gate: an ornate Gothic archway with carved angels on either side. "It's

h Street in campus life may list" for pedestrianization.

a clear sense of crossing a threshold and being in somebody else's backyard," Plattus said.

In a statement, Lauren Zucker, Yale's associate vice president for New Haven affairs, wrote that this block of High Street "affords a unique opportunity to create that welcoming invitation where this edge of campus interfaces with New Haven's vibrant Chapel commercial district."

"Both Yale and the City continue to focus on ways to strengthen New Haven as it relates to both sustainability and pedestrian-friendly initiatives," Zucker wrote. "Turning High Street into a pedestrian-friendly corridor serves this function."

In 2019, a driver struck two prospective students during Yale's annual Bulldog Days for accepted students at the intersection of Elm and High. A similar accident occurred closer to the Chapel and High intersection in 2008, injuring a visiting professor. There are currently no crosswalks present along the block in question, which students said encourages jaywalking as first-years head from Old Campus to class or the dining halls.

Leet Miller '24, a senior architecture major at Yale, spent the summer of 2022 studying usage patterns on High Street as an intern with Yale Facilities, assisting with preliminary research for the conversion. He found that cars only use the street periodically when compared to other nearby parallels, but will often speed, particularly late at night. Crashes or near-misses are not uncommon. Though not a major road, Miller added that High Street is still an important artery for cars due to the prevalence of one-way streets in downtown New Haven.

"But also, ultimately, pedestrianizing Yale's campus allows it to compete better with other elite universities and their campuses," Miller said. "When that pre-frosh is on campus and they see certain things, when they see more pathways and this beautiful gothic architecture, these are selling points for the school. What I learned a lot at campus planning is that a lot of work is done to make it competitive."

Plattus emphasized that High Street is also highly visible during key moments for Yale students: it is where parents drop off their children during their freshman year, watching them enter the dorms for the first time. The street is already closed each year during commencement, which takes place on Old Campus. The critical position of High Street in campus life may have put it on Yale's "wish list" for pedestrianization, he said.

Despite the university's concerns about their safety, students interviewed on High Street said that they didn't find the current traffic on the street to be a disturbance. Sure, they admitted, students jaywalk — but the flow of cars is light, so they tend to be able to cross unimpeded. The only negative that Alicia Shen '26 could name was the occasional noise.

Shen said that she does find the walkway that has replaced Wall Street to be "idyllic," but added, "I also really like the areas where we feel closer to the city and people who aren't part of the school, and [converting High Street] would take that away." Her friend Jane Park '26 added that closing the street would be a drastic visual change.

Ashvin Trehan '27, a first-year student currently living on Old Campus, said that though he found it easy to cross the street in its current form, transforming it into a walkway will "make campus feel more like a campus rather than part of a city, which I think would be a nice little addition."

No one believes that the High Street conversion will cause a crisis in and of itself. The street already looks like it belongs to Yale, according to both local residents and urbanism experts. Closing the street will cause some disturbance in traffic patterns—inconveniencing drivers during their left turns off of Chapel Street—but is not predicted to significantly disrupt them. With this, the true impact of the conversion, according to urban studies professor Rubin, may not necessarily be tangible.

"It could be viewed as a symbolic sign of Yale's control of urban space," he said. "In many ways it is symbolic, but symbols are important."

IF CLOSING A CITY STREET acts as a symbol, then what message does it send?

Since the announcement of the voluntary contribution deal in 2021, Yale officials have evoked Alexander Walk—the converted walkway that now covers two blocks of Wall Street—as a core model for future renovations on High Street. In a virtual press conference after the agreement was publicized, President Peter Salovey told reporters that "when all is said and done," High Street will likely resemble the now-renovated Wall Street, which he said was a beautiful space. High Street will be "city-owned, but similarly landscaped," according to Salovey, encouraging pedestrians to travel both north to south and east to west through walkways that unite Yale's central campus.

Today's Wall Street is heavily trafficked by students heading to classes and framed by greenery and park benches, as well as the grand marble structures of the nearby Beinecke Plaza. It's hard to imagine that a street existed on the land previous-

ly. The design deliberately resembles the interlocking Rose Walk in front of Sterling Memorial Library — formerly part of High Street—down to the sepia color of the paving stones.

Alexander Walk is public, yet New Haveners rarely use it. Why? Rubin, the Yale urban studies professor, said that this is a spillover of a greater "management" of social activities in the public areas of Yale's campus, both through architectural signals and at times through intervention by campus security and police. Cross Campus and the New Haven Green, the two major open green spaces in New Haven, are only half a block away from each other, he said, but do not see the same usage patterns at all.

"There is no reason why a family from New Haven can't put a blanket on the ground and have a picnic [on Cross Campus], and I don't think anyone would stop them from doing it," he said. "But the architecture and the urban design of campus makes it very clear that you're on Yale turf."

In the statement she provided, Zucker, the Yale vice president for New Haven affairs, wrote that the university's goal with regard to High Street is to "create a beautiful public space that will welcome students, New Haven residents, and people from around the world." She added that the university has assembled a planning committee that includes members of the New Haven community, seeking local input on their design.

THE PUSH TO CONVERT streets central to Yale's campus into paved walkways began in earnest just over three decades prior, in 1990. A cash-strapped New Haven struck a deal with the university which first established the voluntary contribution model to partially compensate the city for lost revenue from tax-exempt academic buildings. In return, New Haven granted Yale de facto control over two blocks of High Street and two blocks of Wall Street. They agreed to revisit the status of the properties in 20 years.

Yale's first order of business was to construct Rose Walk on the block of High Street that passed in front of its central library. Meanwhile, they closed the other three blocks to all vehicles—excluding emergency services, deliveries, and Yale's maintenance and security teams.

"The principle was that [the blocks] were ours to convert, we literally bought and literally owned the rights to do that," said former university president Richard Levin, who took office in 1993. "Many people thought it would be an enhancement of the college life, as this was right in the heart of the campus."

After Rose Walk was completed, Levin decided to hold off on converting the other blocks during his tenure, as they were necessary corridors for carrying building materials during the renovations of Sterling Memorial Library and the Yale Law School. In the meantime, he said, Rose Walk had created a "wonderful academic space, and a very inviting one."

Once the agreed-upon 20 years had passed, the city and the university went back to the negotiating table, eventually striking a deal for the sale of the three yet-to-be-converted blocks. Levin, who left office just before the 2013 sale was finalized, questioned why Yale "paid twice for the same thing." The university already had the right to convert the streets based on the terms set in 1990, but now it owns them completely and permanently.

Levin said that closing a third block of High Street was never something that his administration had considered. "I'm less convinced that it's important than I was about the previous parts," he said, describing how the road is "useful" to city residents due to the vehicle traffic and usually-full parking spaces.

His administration produced a comprehensive master plan for campus design in 2000, working with New Haven's mayor at the time, John DeStefano, as well as architecture firm Cooper Robertson. The 200-page document outlines ways for Yale

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to make its campus more cohesive and attractive, suggesting interventions including street closures, conversions of one-way streets to two-ways, and new crosswalks. Many of these have already come to fruition. The plan recommends that Yale "improve the character of High and Wall Streets, particularly along High Street between Elm and Chapel Streets, to make it more attractive to pedestrians," and make High Street a "more prominent gateway to Yale."

The document reveals the extent to which redesigning Yale's campus is intertwined with a redesign of the city. The university even decides the retail environment that surrounds it, said Michael Lee-Murphy, a former journalist who reported on Yale's transformation of the Broadway shopping district. Chapel Street isn't within Yale's campus like the adjoining High Street, he said, but because Yale owns the vast majority of its properties, "they can determine what kind of street it becomes."

Urban policy in New Haven's downtown is set, at least in part, by Yale's decisions, as it works to become a more attractive place for prospective students.

Bruce Alexander, who served as Yale's vice president for New Haven and state affairs for two decades, spearheaded the Wall Street purchase and the expansion of Yale's commercial real estate portfolio. Alexander Walk is named after him. In an interview, he said that Yale's efforts to influence New Haven's urbanism "grew out of a sense that the environment around the campus was becoming a significant detriment to the university." They lost many admitted students to their competitors for this very reason, Alexander said. So Yale changed the environment.

"There are dynamics of economic oppression in the city that are more stark than they are in Cambridge, Massachusetts, or on the Upper West Side of Manhattan, or certainly than in Ithaca," Lee-Murphy said. "Yale keeps bumping up against that reality. So they, as they see it, have to lessen that reality or create a bubble around the university where students can feel safe to shop, walk around, and enjoy the entertainments that Yale thinks are suitable."

Yale "desperately wants to be more like their peer institutions," said architecture professor Plattus. Princeton only has a single gate to its adjoining town, he said, while the majority of Columbia's campus is placed on a "fortified" block raised above street level. Even Harvard and the University of Pennsylvania have a greater number of open spaces and pathways that are removed from the infrastructure of their surrounding cities. Yale, on the other hand, is fundamentally situated on an urban street grid.

Though he carried out pedestrianization projects in his own term, former university president Levin cautioned that Yale should avoid changing the essence of the campus by going to extremes with their walkway conversions. "It's part of the fabric of the place we are," Levin said. "We're part of a city, that's what Yale is."

Some city leaders expressed optimism that the High Street conversion could make Yale feel more public instead of less so — if executed with the right principle in mind. Guzhnay, from the Board of Alders, noted that High Street is already not the most inviting space for New Haven residents. Murals by New Haven artists, picnic tables, or events like street markets and concerts could "activate" the new walkway and welcome community members, he said.

Mayor Elicker said that it is crucial for Yale to be deliberate about demonstrating to New Haveners that they belong on High Street. This will happen not just through design, he added, but also through how Yale affiliates choose to interact with the community they live in.

When it comes to pedestrianizing further streets, Elicker said that the city is happy to have conversations with Yale as future requests arise. "I'm confident that the university is not going to produce something outrageous."

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California's Caste Question

The Battle over Banning Caste Discrimination in the United States

BY **VITTAL SIVAKUMAR**

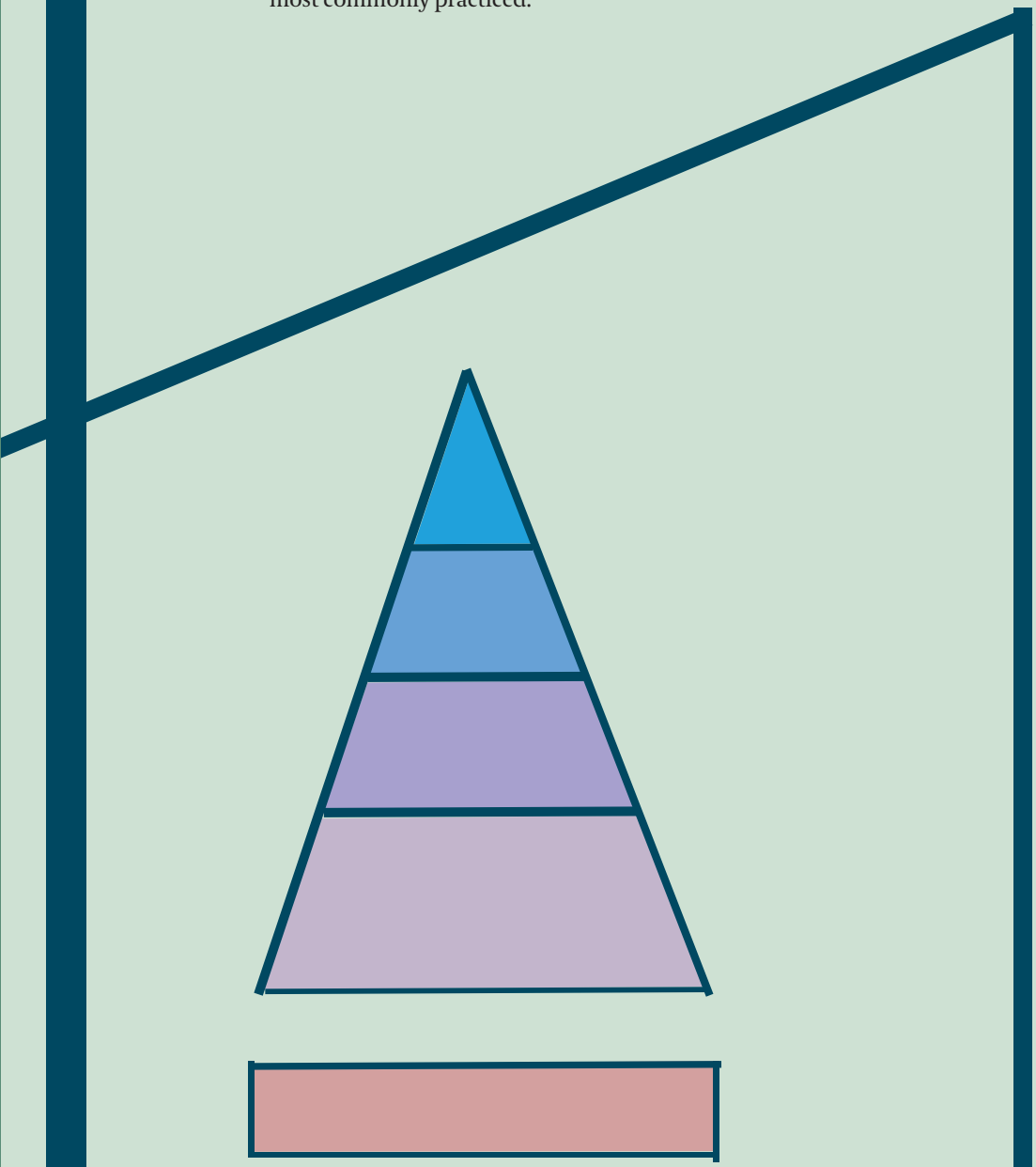
"I was feeling powerless," Prem Pariyar said. It was the morning of October 9, 2023—the culmination of eight months of intense campaigning and fierce debate that divided California's South Asian American community. Gavin Newsom, the governor of California, had just vetoed a bill passed by the California state legislature that would have made the state the first in the nation to explicitly prohibit discrimination based on caste.

California State Senator Aisha Wahab introduced the legislation, Senate Bill 403, in February 2023. It would have added caste to the list of characteristics protected by California's anti-discrimination laws. The bill ignited a firestorm of controversy as South Asian Californians grappled with questions over the pervasiveness of caste discrimination in the United States.

Pariyar, a mental health clinician who lives in the Bay Area, was at his home in Albany, California, when he received the news that the bill was dead. A Nepalese-American immigrant, Pariyar had advocated for the bill for months. "We did a lot of advocacy from day one," he said. "We went to assembly members' offices, we went to senators' offices, we visited their staff multiple times."

In South Asia, the social norms of the caste system have huge real-world impacts, affecting marriage arrangements, food habits, and religious rituals. Thousands of years old, the caste system became more rigid under British rule as the colonial gov-

ernment used the census to categorize people into different castes and incorporated this classification into imperial governance. Caste discrimination was outlawed in India after the country achieved independence in 1947. The ban was enshrined in the Indian constitution in 1950, with affirmative action programs established for government jobs and entrance to public universities. In Nepal, the caste system was legally abolished in 1963. Yet in both nations, laws banning caste have been ineffective because they are difficult to enforce, especially in rural areas where untouchability is most commonly practiced.



For Pariyar, the fight against caste discrimination is personal. Pariyar is a member of the Dalit caste, formerly known as "untouchables." Dalits form the lowest level of the caste system on the Indian subcontinent, traditionally relegated to menial jobs such as cleaning toilets and sweeping streets. In the four-fold varna system of traditional Hindu society, Dalits make up a fifth, excluded class. Viewed by society as "impure," they have often been denied employment and educational opportunities based on their caste identity.

Pariyar and his family fled Nepal in 2015, leaving after his family was brutally assaulted following an argument with a group from the dominant caste.

Pariyar says that Nepalese law enforcement failed to investigate. "The police refused to accept my complaint," he said.

The attack was one of many memories Pariyar has of facing prejudice based on his caste identity in Nepal. In one instance, his elementary school teacher asked him to bring her some water, only to spit it out after his classmates outed him as a Dalit. Another time, Pariyar's best friend in college invited Pariyar to his family's home but suggested that Pariyar use a dominant caste surname to hide his identity or sit in a separate room to eat to ensure his parents were not uncomfortable due to his presence in the kitchen.

Pariyar and his family immigrated to the United States, hoping to leave caste discrimination behind. He has found himself disappointed by the presence of caste discrimination in the U.S.

"People have the same mindset, they practice the same caste system," Pariyar said. "That was very, very shocking for me." His first experience of discriminatory behavior in the United States occurred when Pariyar worked at a restaurant where the owner provided shared housing to many workers from Nepal. He explained that his coworkers refused to live with him due to his lower-caste background.

In 2019, four years after his move to the U.S., Pariyar pursued a Master of Social Work at California State University, East Bay. He described meeting another lower-caste

student from Nepal. The student had changed his last name to an upper-caste surname for fear of not being accepted by his colleagues.

Another time, he met two fellow Nepali students in the university's MBA program. They were initially friendly before they learned that his last name was "Pariyar," a common name among the Nepali Dalit community.

After that, Pariyar says, "they looked at me very differently. They did not say anything… but [their] body expressions were saying… 'How did you come here? You do not belong [here].'"

Pariyar's experience reflects how, as with many forms of prejudice, caste discrimination is often invisible, propagated through unspoken expectations and subconscious biases. **Caste's invisibility is part of what makes it so difficult to measure, analyze, and address**.

At CSU, Pariyar became motivated to start advocating against caste discrimination in the U.S. "In my social work classes, we have a lot of conversations on race, gender, ethnicity, and so many [other] issues… but I did not find myself [represented] there," he said. "As a caste-oppressed student, my experience was different."

Pariyar would go on to play a central role in the addition of caste to the California State University system's non-discrimination policy. In 2022, a year after his graduation, Pariyar's efforts were successful, but the addition continued to face resistance. Two Hindu professors even sued in an attempt to reverse the change, arguing that the policy would single out Hindu and Indian-origin staff and students. After graduating from CSU, Pariyar would continue to advocate against caste discrimination and would later campaign for SB 403.

In South Asia,

debates over dealing with caste have ranged from the portrayal of the caste system in cinema to whether India's reservation system, an affirmative action program created to improve the representation of historically disadvantaged groups in governments and universities, should continue. One of the greatest indications of the endurance of the caste system in South Asia is that inter-caste marriage rates remain in the single digits.

According to Kanishka Elupula, a doctoral student at Harvard who has researched caste in South Asia, "it's the same issues that have been shipped over to the U.S." Elupula is from India, is a member of the Dalit caste, and has been frustrated by his interactions with other Indian students. **"They don't know my caste. They assume that I'm upper-caste because I'm going to Harvard, I'm doing a PhD,"** he explained.

Elupula says that some Indian students fail to acknowledge the existence of caste in India today. In one experience at Harvard, he was sitting with a group of fellow Indian international students, and the question of whether caste is still present in India was posed. Many said that the caste system is no longer practiced.

"They've completely wiped the issue off the table," Elupula asserted. "They live in this world where they don't believe there is any casteism, even though they enjoy the advantages of it every day."

While the majority of Indians identify with a caste, most Indian-Americans don't. In a 2020 study by the Carnegie Institute, 53% of Hindu Indian-Americans said that they "do not personally identify with a caste group of any kind." The number is even lower for Hindu Indian-Americans who were born in the United States, with only 34% identifying with a caste group.

Within the greater South Asian American community, sentiments toward adding caste as a protected category vary depending on immigration status and age. Young Americans of South Asian descent are more likely to support efforts against caste discrimination, whereas older

53%

of Hindu Indi Americans sa that they "d not personally identify with caste group any kind."

South Asian Americans or South Asian immigrants are less likely to support such changes, the Washington Post has reported.

Caste discrimination laws in the United States are controversial due to the belief that such policies will malign the South Asian American community. Elupula doesn't find this argument convincing. "I think it's pretty shallow. It's like saying [that] if we introduce laws against gender violence, it puts men in a bad light."

But many South Asian Americans disagree. Pushpita Prasad is a member of the Board of Directors of the Coalition of Hindus of North America (COHNA). The organization is one of many interest groups that advocated against SB 403.

"They have no evidence that this is actually happening," Prasad said of caste discrimination in the U.S. "When we asked for proof, the only proof that SB 403 provided when it was launched were three things. One was Cisco, the second was the Equality Labs survey, and the third was a case that Senator Wahab dug out from 1999," she said.

"Cisco" refers to a case that the California Civil Rights Department (CRD) brought against two Cisco supervisors of Indian origin in 2020, accusing them of harassing a colleague due to his caste. The case against the two supervisors was voluntarily dismissed by the CRD in April, but litigation against the company is still ongoing.

Equality Labs is a Dalit advocacy organization that supports adding caste as a protected class in discrimination policies. In 2018, the group released a report on caste discrimination in the United States, a first-of-its-kind study. The report found that 41% of Dalits faced discrimination based on their caste in schools and 67% of Dalits faced discrimination based on their caste in the workplace. Critics, including COHNA, have said that the survey is flawed, arguing that a representative sample of South Asian Americans wasn't used.

The third piece of evidence is a 1999 case in which an Indian-American real estate magnate in California was convicted of human trafficking. Federal prosecutors argued that he took advantage of the caste system to exploit Indian women.

There is a limited amount of research on caste discrimination in the United States, partly a reflection of the fact that the size of the group that caste prejudice affects – a subset of the South Asian American community – is so small. The Carnegie study found that only 5% of Indian-Americans reported experiencing caste discrimination. **South Asian immigrants disproportionately come from upper-caste backgrounds.**

"Who really comes to the U.S.? It's not usually the lower caste who are fleeing discrimination. They don't really have the money, the cultural, social, economic, or educational capital to make that journey or transition," Elupula said.

Activists for SB 403 also argue that many people are reluctant to speak out about their experiences with discrimination. "They are hesitant because of their immigration status, because they feel powerless, because they [feel like] nobody is going to believe them," Pariyar said.

Prasad contends, however, that the issue of caste in the South Asian diaspora is "a problem that has been manufactured," that caste discrimination is covered under existing anti-discrimination law, and that laws explicitly banning caste discrimination based on limited evidence would "take the crime of one person and then tar the whole community with it."

Interest group advocacy against caste discrimination laws highlights fears that such policies will stigmatize all people of South Asian descent in the U.S. There is some merit to these claims. While the concept of caste has been used to understand hierarchical social systems in many parts of the world, the caste system of South Asia is the most well-known. While caste self-identification is present in most of South Asia's countries and major religions, the word "caste" is culturally associated with India and Hindus.

This association is exemplified by the appearance of caste on the national political stage last summer. In August, a Super PAC aligned with Ron DeSantis' campaign in the 2024 Republican presidential primary posted hundreds of pages of debate advice, internal polling, and research memos online with recommendations for attacking the Indian-American candidate Vivek Ramaswamy. It's illegal for Super PACs to privately strategize with campaigns, so they often discreetly post their work on the internet to circumvent the law. Unfortunately for DeSantis, these documents were discovered by *The New York Times*.

"Ramaswamy — a Hindu who grew up visiting relatives in India and was very much ingrained in India's caste system — supports this as a mechanism to preserve a meritocracy in America," the document reads.

Ramaswamy was the only candidate whose national or religious background was brought up in the documents. The advice was notable because, as the *Times* pointed out, "highlighting a minority candidate's ethnicity or faith is historically a dog whistle in politics, a way to signify the person is somehow different from other Americans."

"Who are we kidding? Most Indians have authoritarian tendencies," wrote one commenter on an article about the selection of Kamala Harris, an Indian-American, as Joe Biden's running mate in the 2020 presidential election. "They admire strongmen (Modi) and there is rampant sexism and racism (disguised as casteism) in India. Even when Indians move to the West, they still have those tendencies."

A central idea in the caste law debate is that immigrants transport beliefs from their home countries to their destinations, including bigotry. It's easy to imagine how that conclusion can fuel stereotypes through oversimplified characterizations of immigrant groups. To many caste law opponents, caste discrimination may be one form of prejudice, but xenophobic portrayals of the entire South Asian, Indian, or Hindu American community as casteist are a rising example of prejudice too. Opponents believe that such stereotypes will inevitably increase with the introduction of caste policies.

The question of whether anti-caste discrimination legislation would mitigate or amplify discrimination is nuanced. The caste system is a form of systemic discrimination while instances of stereotyping South Asians as casteist are more often instances of interpersonal racism. The main argument of caste law opponents is that such policies would inevitably create increased discrimination in the future whereas supporters argue that legislation such as SB 403 is necessary to curtail discrimination that is already happening. Many South Asian Americans oppose caste laws based on their minority experience in America, fearing that the actions of the few could be a referendum on the character of all South Asians. But caste law supporters claim that many upper caste opponents, blind to their own privilege and never having observed caste discrimination themselves, don't see the importance of discussing caste inequality and fail to empathize with those who are caste-oppressed.

Many of the interest groups opposing caste discrimination laws have not only objected to the addition of caste as a protected class in anti-discrimination policies but to a range of cases that caste has been brought into. In 2020, Pulitzer-prize-winning journalist Isabel Wilkerson published the book *Caste: The Origin of Our Discontents*, comparing systemic inequality in the United States with the caste system of India and the racial policies of Nazi Germany. It was accused by some Hindu interest groups of promoting false equivalence between caste and race and as a continuation of Western essentialization of Indian society. Prasad said that the book "created this framework within which all these fake allegations have been thrown at us" and emphasized that Wilkerson "herself says that she spent less than 60 days in [India]".

Many Hindu interest groups also opposed the Cisco case, arguing that prosecutors were using a single instance of discrimination to make broad assumptions about the nature of caste. Broadly, interest groups have stated that Amercians' understanding of caste is distorted. They have also accused supporters of caste legislation of perpetuating Hinduphobia.

The wide-ranging opposition of interest groups to caste-related activities has drawn accusations that interest groups' efforts are not limited to fending off prejudice but also to prevent the very concept of caste discrimination from entering America's public consciousness. That's an argument that many progressive South Asian activists and commentators have made. Ironically, interest groups may have contributed to advancing the same perceptions and stereotypes that they sought to prevent: that caste prejudice is prevalent among South Asians.

With a rising number of initiatives to create caste policies, issues of caste are likely to be increasingly prevalent in public discourse in the years to come. According to Sangay Mishra, an Associate Professor of Political Science at Drew University and the author of *Desis Divided: The Political Lives of South Asian Americans*, new reports display the diversity of settings where caste prejudice is present in the United States. "There are all kinds of spaces in which we have seen examples of [caste] discrimination coming up. People have testified, people have written their stories, and they have given evidence," he said.

The Cisco case seems to have opened the door to dozens of reports of caste discrimination in Silicon Valley, bringing tech giants such as Apple and Google into the controversy. **Last February, Seattle became the first city in the United States to ban caste discrimination** after an ordinance was introduced by Seattle City Councilmember Kshama Sawant, an immigrant raised in an upper-caste, Hindu household in India. An increasing number of student organizations have passed caste resolutions and more universities are adding caste as a protected class in nondiscrimination policies. Mishra says that more needs to be done. "The attempt should be [made] to find people who come from [lower-caste] communities and take their opinion, their sense of how they have gone through the process of settling in the U.S."

The news of proposed caste laws in the United States has even caught the attention of media outlets in South Asia. Some, like *Swarajya*, a right-wing magazine, were critical, calling Governor Newsom's veto of SB 403 "a victory for the U.S. Hindu community."

The Indian Express, one of India's largest English-language newspapers, was more accepting and viewed the legislation through the lens of the efforts of Indian-Americans to achieve success in the U.S. More than just an anti-discriminatory law, the outlet framed the caste law as a fresh start for the Indian-American community, an opportunity to confront old wounds. "That there are enough Indian migrants in the U.S. with the means and courage to raise their voices against discrimination is to be welcomed," wrote the article. "After all, if the Indian-American dream is merely financial, unwilling to confront its own demons, it is a fragile one."

A Pact of Silence

Press Censorship after the Guatemalan Civil War

BY **ELIZA DAUNT**

ON JANUARY 15TH, 2024, Guatemala swore in a new President, Bernardo Arévalo, an anti-corruption crusader whose landslide victory last fall shocked the country. Arévalo, a former diplomat, won the election by promising good governance reforms and an end to Democratic backsliding.

This is not the first time Guatemala has been promised peace. On December 29, 1996, the *Accord for a Firm and Lasting Peace* was signed, bringing the civil war that had engulfed Guatemala for 36 years to an end. Whilst the war did end, corruption and suppression continued, with the country effectively controlled by the *pacto de corruptos*, The Pact of the Corrupt.

The 36-year civil war was precipitated by the election of Jacobo Árbenz in 1951. His presidency marked a period of progressive reforms that antagonized American corporations with extensive land holdings in Guatemala. Three years after his election, Árbenz was overthrown in a coup orchestrated by the CIA. The coup marked the beginning of a period of intense political instability. The resultant civil war killed over 200,000 Guatemalans, roughly 85% of whom were indigenous Mayans.

The worst of the violence occurred in

the seventeen months after General Efraín Ríos Montt seized power in early 1982. Ríos Montt launched a 'scorched earth' operation that targeted the country's indigenous population. Within the first eight months of his tenure, 75,000 people had been killed. Montt was later convicted of genocide and crimes against humanity.

Jean-Marie Simon, one of the few foreign journalists on the ground as Ríos Montt launched his coup, arrived just before the conflict escalated.

Then a young woman working as a photojournalist, Simon vividly remembers the sense of fear that permeated Guatemala in the 1980s. "There was a pact of silence. Everybody had pseudonyms—I had two! I was followed. My phone was tapped," she said. "You were always kind of looking at the reflection in the store window to see who was behind you."

The fear extended far beyond journalists, Simon explained, reaching all corners of society. "A priest I knew had a tiny paper 12-month calendar. He told me that he wrote all his appointments in that little book. That way if the army came along, he could chew the pages really fast and swallow them."

Author and journalist Francisco Goldman, whose novel, *Monkey Boy*, was a finalist for the 2022 Pulitzer Prize for Fiction, overlapped with Simon in Guatemala in the 80s. She recalled an incident that occurred while walking through Guatemala City with Goldman in 1985. As they entered an alley, a group of men with machine guns jumped out of a dark car and confronted the pair. Reflecting on the experience years later, Simon noted the protection provided by her American citizenship. "I ran nowhere near the risk a Guatemalan would have in my position. They would have been killed or gone into exile," she said. "Local journalists didn't investigate anything… they often capitulated when on the Army's payroll, or they just told a one-sided story."

Goldman also recalled the repression of the press. "It was a heart attack every day…if a journalist didn't play by the rules, which was not to report the truth, they could be killed, disappeared, or threatened so badly they fled into exile," she said.

By 1991, both Goldman and Simon had left the country. "I was just so sick of it, so burnt out. I was so sick of violence. So sick of politics," said Goldman. In her eight years there, Simon fixated on capturing all sides of war. Her photography revealed General Ríos Montt flanked by Junta members as he announced his coup; members of the guerrilla army of the poor—many of them children—training with sticks; the tortured and mutilated corpse of Héctor Gómez Calito, co-founder of Guatemala's sole internal human rights group; and Mayan widows and orphans listening to an ideological talk at an army-run relocation camp.

By capturing the nuance of war, she hoped to depolarize it, erasing the notion of a simplistic struggle of good against evil. "It's easy to believe a fairy tale where you've got martyrs and villains. There are certainly villains in Guatemala's story, and there are some martyrs. But most people fall somewhere in between those two extremes, and it's important to listen to those stories as well." She continued, "people on the right are my friends as well, you know, they've not got horns and a tail."

A war that began with rebellious left-leaning officers fleeing into the hills had turned into thirty-six years of violence, and though the Guatemalan government was responsible for the vast majority of the killing, neither side's hands were clean.

Goldman echoed Simon's sentiments. "The one thing that marks, at least the literary Central American and Latin American writers of my generation… is complete cynicism about both sides… complete revulsion finally over the guerrillas too."

The 1996 Peace Accords should have opened the door toward a democratic

PHOTOS COURTESY OF **JEAN-MARIE SIMON**

state. Instead, due to lingering political divisions, the old alliances forged in the civil war between the military and business families persisted, and corruption in journalism remained. Soon, the same elite class that controlled Guatemala during the conflict, "The Pact of the Corrupt," reasserted itself.

Jessie Cohn is the Executive Director of Amigos de Santa Cruz, an organization that aims to improve the lives of the indigenous people of Santa Cruz. She has lived in Santa Cruz for almost nine years. "There has never been a strong independent press," she said. "From my perception, we've seen a step up in the last year of targeting journalists… The corruption just beats you down at every level… So you're sort of in the darkness."

In place of disappearances and political killings, the judicial branch has become the instrument of intimidation and repression. Dictated by the whims of powerful officials, the courts imprison individuals on technicalities or completely fabricated charges.

Goldman comments on the motivations of Guatemalan officials, "I know they really want to kill somebody, you know, they're dying to kill somebody," he said. "But they just can't get away with it in the same way. They've found that putting people in prison is a really effective way of silencing people."

The fate of José Rubin Zamora is emblematic of the government's harnessing of the judiciary to silence critics. Zamora is the founder of three Guatemalan newspapers and one of Simon's close friends. His newspapers regularly reported on the alleged corruption of President Alejandro Giammattei and his allies. Zamora was also the only newspaper publisher willing to name high-ranking Guatemalan government officials associated with the drug trade.

On July 29, 2022, Zamora was imprisoned and charged with money laundering, an arrest he characterized as "political persecution." His wife was forced into exile in the United States.

"José Rubin was not a leftist by any means. He was just a guy who couldn't not tell the truth," Simon said. "He is not a corrupt person. He's an honest investigative journalist and publisher."

Throughout his career, according to Simon, Zamora has been threatened, attacked, held hostage, drugged, and kidnapped. "He is truly the guy with nine lives. The idea that he is languishing in prison is just outrageous," she said.

Dagmar Thiel is the U.S. director of Fundamedios, a non-profit organization that advocates for freedom of expression in the Americas. Thiel notes that Zamora is far from the only imprisoned Guatemalan journalist. Many of those who join him are indigenous people who work in the provinces. They suffer from even greater discrimination. "They don't have any international support because they are not well known. They also aren't recognized in Guatemala because many believe that the only credible journalists are white and male," Thiel explains.

Goldman adds, "Obviously, they've imprisoned our good friend José Rubin Zamora, but they've also chased a whole bunch of reporters into exile."

Thiel notes that over 20 prominent journalists have gone into exile in the last year, an extremely high percentage of those working in such a small country. She also notes that many of the journalists she has worked with express a preference for jail over exile. "At least in jail, they could see their family members every couple of weeks. In exile, they meet nobody. They are free, but they don't have any means of living abroad. It's very hard for them to get a job, integrate into the community, and many who go to the U.S. don't speak English," Thiel said.

Simon notes that "there's a whole cohort of Guatemalan journalists and former

attorneys general still living right here in Washington DC, who are chomping at the bit to go back." Yet, those in Washington represent just that small fraction of the most prominent and wealthy exiles. Most, whose pockets are not deep enough to get them to the United States, reside in Mexico.

Goldman notes that these exiles "as talented and as brave as they are, are hanging on by their fingernails." Despite this, whilst many of the Washington exiles are eager to return, the young intellectuals in Mexico are inclined to remain there, attracted by the better educational opportunities for both them and their families.

The specter of the violence has also returned. Journalists are being murdered. "Last year, five journalists were killed. That's one of the highest numbers in the continent. In Mexico, we had seven journalists killed, but Mexico has over 100 million more inhabitants," Thiel said.

In 2023, a glimmer of hope for Guatemala's freedom of the press shone through the darkness of years shrouded by 'The Pact of the Corrupt'. On the 20th of August 2023, Bernardo Arévalo won the Guatemalan elections. Promising to tackle the entrenched political elite that weakened Guatemala's judiciary and suffocated its freedom of the press, Arévalo secured over 58% of the votes. He told reporters: "The people of Guatemala have spoken forcefully. Enough with so much corruption."

Yet, just hours after his victory, Arévalo's party, Movimiento Semilla, was suspended by Guatemala's Supreme Electoral Tribunal. Attorneys-General Consuelo Porras accused him of forging the signatures gathered to register his party, having found 12 dead people among the 25,000 signatories. Critics point out that she only launched her investigation into the party after Arévalo secured a surprise spot in the run-off.

These efforts to hinder a seamless transfer of power have drawn international condemnation, widely perceived as the initial stages of a coup d'état. Protests, for the most part non-violent, erupted across the country.

Cohn, whose work is integrated with the indigenous people of Santa Cruz, observed the nature of these protests, "It wasn't one movement with national leadership. It was many different indigenous movements across the country who came together, passionate about contributing towards a better future."

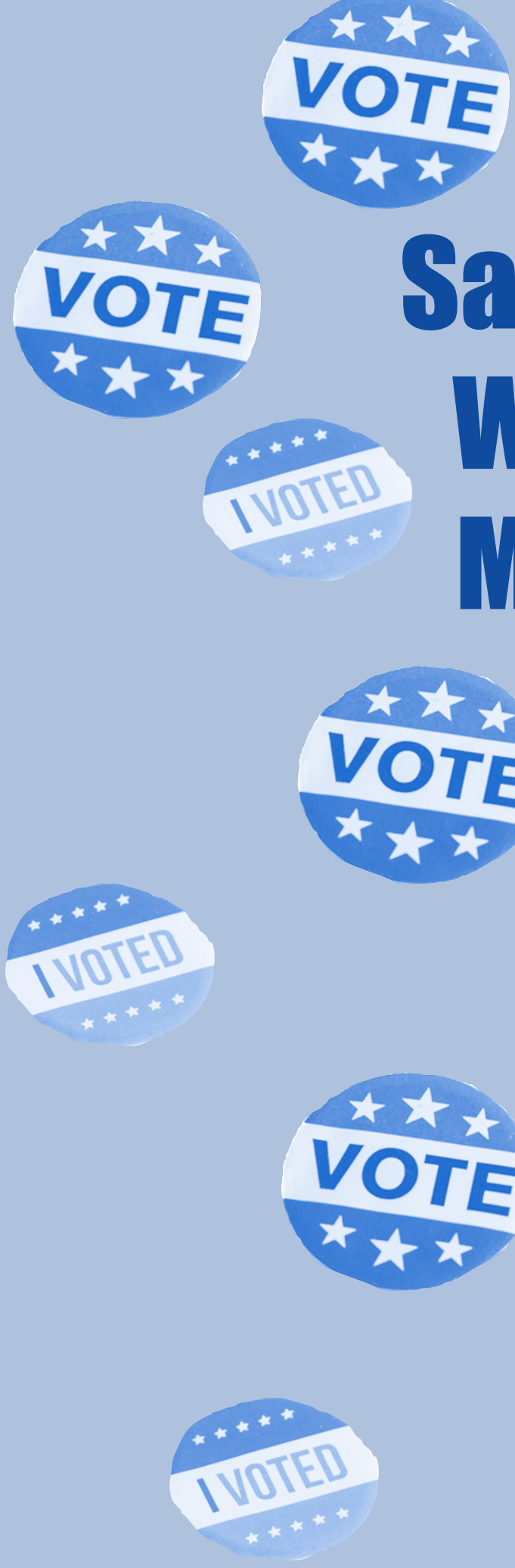
The scale of these protests is illustrated through their impact, paralyzing traffic on major highways and causing widespread fuel and food shortages across the country. Cohn comments on this impact in Santa Cruz: "Our local situation got very precarious in terms of access to basic food supplies. Our transportation was cut off, the boats stopped running so we couldn't get anywhere. There was no cooking gas or cash at ATMs." Indigenous leaders at the departmental level also put a lot of pressure on smaller villages to send forward people to join the protests. "They threatened to turn off electricity and revoke access to food if these towns didn't send protestors."

The pressure mounted, and the government's hand was forced. On January 14, 2024, the courts ruled that Arévalo should assume his seat of power, potentially ushering in a new era of democracy in Guatemala.

Arévalo's ascendance is indicative of a fundamental shift in politics in Guatemala as the masses reject corruption and turn towards a more democratic future. Goldman comments, "Young people opened the door for Arévalo's victory, and then indigenous organizations in the countryside really played the critical role." He cites two reasons for this assertion of popular power. First, "they've had a different upbringing." Unlike their elders "they are not traumatized by the personal memories of a really violent uprising." Second, "they're more worldly, not just through social media, but everybody in Guatemala knows someone who has emigrated, so there is just a constant flow of information."

According to Goldman, a major consequence is that "the Guatemalan press has been really unfettered, uncontrollable, really incredibly feisty." Technological progress has allowed almost anyone to set up a digital news site, blunting the impact of the loss of so many reporters to exile. Even amid repression, it proved impossible to stop aggressive reporting because of the sheer number of active outlets. "The young people just keep punching and punching… the collective bravery of all those people is great armor against fear."

"I mean, how can you not be happy about this? I think Arévalo is the real deal," Simon said. "I love the way he comports himself. I think he is the most patient person I've ever seen in my life – the way he works a crowd and stuff, I don't feel any artifice from him. So yes, I'm very hopeful about this. You know, I hope he slays dragons."



The Ex-Gun Salesman Who Wants to Turn Montana Blue

BY **THEO SOTOODEHNIA**

"I THINK DEMOCRATS NEED TO understand that a political party is about one thing: winning elections," said Ryan Busse, as he sipped his coffee at a Starbucks in Kalispell, Montana, his home for the last 25 years. Busse is the only Democrat running for Governor of Montana this year.

"It's not about being right," he continued. "It's not about proving to people your 14-point policy plan is genius. It's not about any of that shit. It's about winning elections."

Busse is blunt, with piercing eyes, a neatly trimmed beard, and the intensity one would expect of a successful salesman. In a blue fleece vest and weathered baseball cap, he looks more like an outdoorsy dad than a professional politician. His biography is equally unorthodox—for a Democrat, at least.

2024 marks Busse's first campaign for public office. Until 2020, he was the head of sales at Kimber, a pillar of the gun-manufacturing establishment.

"I don't know how many guns I've sold exactly, but it's a lot. Between 2 and 3 million," Busse said.

Democrats in the traditional mold are struggling in Montana. Is a self-styled, straight-talking former gun salesman the answer to Montana Democrats' struggles? Is it even possible for a Montana Democrat not named Jon Tester to win in the near future?

Though these questions are Montana-specific, they have broader implications. Democrats are struggling to win votes amongst those without college degrees and those who live in rural or small metropolitan areas. If Democrats want to win the Senate and the presidency, they must be competitive outside major urban centers, and Busse's unorthodox candidacy may offer lessons for Democrats who are seeking to compete in challenging terrain for the party.

When Busse started at Kimber in the mid-1990s, the company was a small player in the firearms industry. As the firm grew, Busse became well-known among gun-manufacturers as a capable salesman unafraid of entering gun-right battles. He gained prominence in the industry in part by organizing a successful boycott of Smith and Wesson, after the storied gun manufacturer entered into an agreement with the Clinton administration to institute safety measures on their guns.

Busse became more politically active in the early 2000s, beginning to engage with the conservation movement and reflect on the gun lobby's role in American politics. After leaving Kimber in 2020, Busse published a memoir chronicling his career in—and gradual alienation from—the gun industry. In the book, *Gunfight*, he criticized what he viewed as the NRA's corrosive effect on American political discourse. Busse then joined the gun-safety group Giffords as a senior advisor.

This is an unusual biography for a Montana Democrat. The long career in the gun industry; the very public breakup with that industry; the time dedicated to a famous gun-control advocacy group. Ryan Busse is different, and he knows it.

"There's a very loud subsection of radicalized Republicans who are experts at controlling the mic," Busse said. "I think that's 15% of the electorate. The remaining 85% are tired of that shit," he continued. "They need a Democrat that is not in the national mold, in the coastal democratic movement. They'd like a libertarian Democrat, a kind of a free-thinking, straight-talking Democrat—all things that I think I am."

Montana has long been a breeding ground for powerful, larger-than-life Democratic politicians. From Senator Mike Mansfield, the longest-serving Senate Majority leader in American history, and Senator Max Baucus, the long-time chair of the Senate's Finance Committee, to Governor Brian Schweitzer, a beloved politician famous for vetoing bills with a branding iron, Montana has produced more than its share of national political talent.

While in America's popular imagination, the Montana of old is one of cowboys and wide open spaces, the state—and its Democratic Party—was built in union halls, on small family farms, in logging camps, and miles underground in Butte's copper mines.

At the turn of the 20th century, Montana was controlled by copper barons. Butte—a city in Southwestern Montana—sits atop one of the world's largest copper mines. It was once the largest population center between Minneapolis and Spokane, attracting immigrants from across the world. Mine bosses bought off politicians, and organized labor fought bloody battles with strike-breakers and vigilantes.

The labor movement and the New Deal, which saved many small farms from ruin in the 1930s, forged the modern Montana Democratic Party. The party came to rely on a coalition of union-members, family farmers, and Indigenous Americans.

The decline of Montana's extractive industries weakened this coalition. In the early 1980s, the mining industry in and around Butte shrunk drastically. The smelter in Great Falls closed in 1982, and by the end of the 1990s timber production had fallen by 80% across the state. The groups that built the Democratic Party of Montana had fallen on hard times.

Even as the labor strongholds that powered generations of Montana Democrats struggled with economic decline, the Montana Democratic Party hung on—supported by a motley coalition of liberals in college towns, what remained of the labor movement, and Indigenous voters. It was this modified coalition that powered Brian Schweitzer and Steve Bullock to the governor's mansion in Helena between 2004 and 2020, and continued to elect Max Baucus and Jon Tester to the U.S. Senate.

The Trump era blew a hole in this

"Montana used to be, legitimately, a purple state. But that's just not the case anymore," Saldin said.

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already-fragile coalition. Democrats lost ground with working-class voters across the nation, and Montana was no exception. In 2014, the state had two Democratic senators and a popular Democratic governor. Democrats held five of Montana's six statewide elected offices. Today, a decade later, the only statewide elected Democrat is Senator Jon Tester, who is facing a difficult race of his own this year.

In 2020, Montana Democrats nominated term-limited Governor Steve Bullock to run for United States Senate. Bullock lost by more than ten points. Democrats picked Bullock's Lieutenant Governor, Mike Cooney, to be their candidate for governor. Cooney, a long-time political player who had served in the state legislature and as Montana's Secretary of State for over a decade, lost as well. After the 2020 elections, Republicans controlled the governor's mansion and held a supermajority in both legislative chambers for the first time since the 1970s.

"There used to be this iron law of politics that higher turnout was good for Democrats and bad for Republicans," said Dr. Robert Saldin, director of the Mansfield Center at the University of Montana and a prominent political analyst for Montana Public Radio. "It's pretty clear to me now that that is not true. A lot of people turned out to vote who have not been regular voters in the past, and those people swung heavily in the Republican direction," Saldin said.

Two years later, in 2022, Democrats failed to make up any ground in the legislature. Republicans even picked up state senate seats in traditional working-class Democratic strongholds, like Anaconda and Great Falls.

"Montana used to be, legitimately, a purple state. But that's just not the case anymore," Saldin said.

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Dr. Jessi Bennion, a political scientist at Montana State University in Bozeman, agreed. "The past decade, and certainly after 2016 and 2020, really sealed the deal that Montana is no longer a purple state. It's squarely a red state," she said.

The COVID-19 pandemic further reshaped Montana's politics. The events of 2020 spurred a population boom across the mountain west, but the growth was particularly stark in Montana. From 2019 to 2022, the state added 50,000 new residents, a roughly 5% increase over a four-year period. While Montana does not publish partisan voter registration data, some observers speculate that those moving to the state skew conservative, attracted by notions of escaping government overreach.

"You do get a lot of these kinds of refugees from California and Seattle. And people say, 'look at all these people coming from liberal California, that's going to really transform Montana.' Well, no, not necessarily. Not if the people coming from California are seeking a place that's more in line with their preferences," Saldin said. "And maybe that's political, right? They're sick of being in a blue state and want to move to a place that's more conservative. But it doesn't even always have to be overtly political. They might say, 'oh, I want some more wide open country.'"

Saldin emphasized that observations of this kind are common but difficult to prove. "I don't even know how you would attempt to construct any kind of hard data that empirically proves that point," he added.

Additionally, as working-class Democratic bastions have shrunk (both in population and in their support for Montana Democrats), more liberal voters in cities like Missoula—home of the University of Montana—wield increasing influence in Democratic primaries, selecting candi-

dates that may not be as appealing statewide.

"You don't see those people that grew up, you know, working and voting Democrat—what you traditionally thought of as the Montana Democratic Party. Instead, you see the Subaru set," said Pepper Petersen, President of the Montana Cannabis Guild, a marijuana industry trade association.

Saldin hit upon similar themes. "For a long time, Democrats were, very clearly, the working class party. And that's not true anymore," Saldin said. "To the extent we want to identify one party as being the working class party, that'd be the Republican Party."

The environmental movement's increased influence within the Montana Democratic Party has also had complicated electoral consequences. Montana has a strong and broadly popular conservation movement, but when it comes to regulations around fossil fuel extraction and production, environmental protection becomes more polarizing. The Democratic Party's national messaging on extractive industries has, in the view of some Montana politicians and strategists, contributed to the party's struggles in the state.

"There has always been that tension in the Montana Democratic Party, between environmentalists and the more union or blue collar resource jobs," said Bennion, the MSU political scientist. "There is a wing of the Montana Democratic Party that is very progressive, that obviously wants to focus more on renewable energy. That means that those kinds of other jobs that really power our economy in Montana—they don't necessarily care about those jobs."

Jason Small, an influential Republican state senator and the Executive Secretary of the Montana AFL-CIO, said his involvement in Republican politics grew out of opposition to President Obama's Clean Power Plan, which threatened jobs in eastern Montana.

Environmental groups, allied with the Democratic Party, "were providing these new rules and regulations to basically eviscerate my entire way of life," said Small. "It became apparent at that point, even though I was a union member and an officer, I definitely didn't agree with a whole lot of what was happening."

Montana Democrats are being squeezed on all sides: by national shifts in working-class and rural voting patterns, an increasingly liberal Democratic primary electorate, and a wave of conservative newcomers to the state.

In addition to these structural challenges, any Democratic candidate would have to run against a wealthy and relatively popular incumbent governor, Republican Greg Gianforte. Like Busse, Gianforte first moved to Montana in the 1990s. After arriving in Bozeman, he founded a technology firm that he eventually sold for $1.5 billion. One of Gianforte's early hires at the firm was a young executive named Steve Daines, now Montana's junior senator.

Gianforte's involvement in public life began as a donor in the mid-2000s. He gave generously to conservative and Christian causes, including to an anti-evolution museum in Glendive, Montana. It was not until 2016, though, that Gianforte first put his name on a ballot. That year, he ran for governor against incumbent Democrat Steve Bullock. Gianforte lost by about four points on the same day Donald Trump carried the state by over 20% and Democrats lost four other statewide elected offices. Throughout the campaign, Gianforte

stumbled on crucial Montana issues, like access to public lands, and failed to articulate why Montanans should fire an incumbent with high approval ratings.

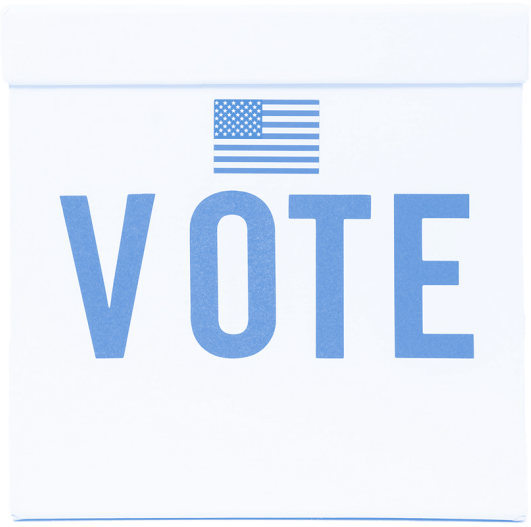
Gianforte burst onto the national political stage in a 2017 special election, when he ran to replace the newly-appointed Interior Secretary, Congressman Ryan Zinke. Frustrated with questioning from *Guardian* reporter Ben Jacobs, Gianforte shoved him to the ground. Although he was convicted of misdemeanor assault, Gianforte still narrowly beat his opponent, country singer Rob Quist. "Any guy that can do a body slam, he is my kinda guy," President Trump said at a rally after Gianforte's narrow victory.

In 2020, Gianforte sought the governor's office for a second time and won a commanding victory in the general election over incumbent Lt. Governor Mike Cooney. Since taking office, Gianforte has advanced many conservative priorities, including signing legislation banning TikTok and legalizing charter schools. He has also pushed a conservative social agenda, restricting the ability of transgender youth to play on womens' sports teams and signing several anti-abortion measures, which were quickly rejected by the Montana Supreme Court.

"Busse feels Gianforte and the Republican legislature's aggressive stances on social issues could be an electoral liability for the Republican Party in the hands of the right Democrat. He's confident that the Montana Republican Party, in catering to a small, socially-conservative subset of its base, has quietly alienated much of the state.

"It's totally anti-freedom," Busse said. "I think most Montanans find it detestable."

Gianforte's term has not solely been focused on advancing Republican causes. He also received national attention for approving housing and planning reforms aimed at tackling rising home prices in Montana, earning praise in *The Atlantic*, *Bloomberg*, and other publications. The reforms, recommended by a commission Gianforte convened to study the housing crisis, focused on easing the permitting process and encouraging dense development in urban areas. Passed with bipartisan support, policymakers across the country have looked to Montana's reforms as a model for their own states.



While Gianforte's term has seen notable successes, there have also been serious unforced errors. In 2022, Gianforte hired 28-year-old Charlie Brereton to run the

"Republicans are pretty good at setting culture war traps, and I think Democrats are far too good at stepping in them," Busse said.

Montana Department of Public Health and Human Services—the state's largest department. Brereton, whose youth has earned him the nickname "the intern," has overhauled the state's Medicaid eligibility process. His reforms have led to over 110,000 Montanans, or roughly one in ten, being kicked off Medicaid. Nearly two-thirds of those who lost their coverage did so due to paperwork issues, not actual disputes over their eligibility. Nearly 25,000 of those who lost coverage are children.

The issues that could inflict the most political damage on Gianforte, though, are Montanans' skyrocketing property tax bills. Montana periodically experiences cycles of rapid residential property-value growth. The state takes a certain percentage of each home's taxable value to fund education programs. Over the last four years, the average home price in Montana has increased by 60%, which in turn has boosted the amount of money sent to state coffers. In the last year, the median Montanan's property tax bill increased by 21%.

In the past, the state legislature has countered these tax increases by passing permanent tax relief. This session, though, the legislature only passed a two-time, $600 tax rebate, providing temporary relief instead of a permanent fix.

Gianforte proceeded to blame local governments for Montanans' increased tax bills, angering both liberal and conservative elected officials across the state.

Chris Hindoien, the Mayor of Choteau, Montana, was one of many conservative local officials who criticized Gianforte's narrative on the property-tax increase. In a press release, Hindoien said, "Governor Gianforte, along with the Governor's Housing Task force, and some members of the legislature have tried to blame local government for that tax increase. THAT IS SIMPLY NOT TRUE."

This issue, and Gianforte's response to it, has left many Montana political observers confused. "You're trying to figure out, like, is this electorally helpful? Does this help them negotiate for something? Or did they just eff it up?" Bennion said.

Explanations range from outright incompetence to a masterful plot to put Montana in a fiscal position where it's necessary for the state to adopt a sales tax during the next legislative session.

Montana currently has income and property taxes, but no sales tax. Before he entered politics, Gianforte advocated for eliminating Montana's income tax and replacing it with a sales tax. There are arguments for introducing a sales tax in Montana—mainly that it would help the state capture revenue from tourism. But sales taxes are regressive taxes, which property taxes and income taxes are not.

"All of these moves signal that the governor is going to be pushing for a sales tax," said Pepper Petersen.

"The governor protects his own. He's within a very small income bracket in Montana," Petersen continued. "There's a big disconnect between the average voter in Montana and what Greg Gianforte is and what he represents."

An adept Democrat might be able to take advantage of widespread anger over the property-tax issue and Gianforte's broader weaknesses as a politician. The question is whether Busse has what it takes.

Busse thinks that Democrats focus too much on issues and arguments that do not matter to most voters, losing ground to Republicans who know how to sell a broader narrative.

"Republicans are pretty good at set-

“I think so many times, candidates are like ‘well, geez, we don’t want to say anything bad,’” Busse said. “We don’t want to throw a punch. We don’t want to be tough. Bullshit.”

ting culture war traps, and I think Democrats are far too good at stepping in them,” Busse said. “When we do that, as Democrats, we send the message that we are so fortunate that we can just sit around worrying about these culture war issues all the time. Meanwhile, in places like Great Falls, they’re like, ‘I need a place to live. I need a job.’ We’re sending this message that we have better things to worry about than that. It’s a political loser.”

Busse believes his path to victory lies in convincing Montana voters that Gianforte is only looking out for himself and his rich friends. It’s a narrative as old as politics itself—classic class politics. But coming from a liberal Democrat in such clear terms, it feels new.

“Everywhere I go, working people feel like their state is being taken from them by wealthy, powerful people,” Busse said.

“You have a governor who is a billionaire, a powerful dude that flies around in a private jet. He embodies this thing that everybody hates. So that’s why I feel like there is this populist movement in the state,” he continued. “I can’t make farmers upset about big agribusiness. I can’t make people in Kalispell scared that they can’t afford their rent. I can’t do that. When the whole populace feels the same kind of angst and a candidate puts flame to it—–that’s when you can beat an incumbent.”

This kind of pugilistic, populist appeal, Busse believes, will allow him to cross partisan barriers that have hindered Democrats in recent cycles. Rising property tax bills, kicking people off Medicaid, catering to wealthy out-of-state hunters—Busse hopes to weave these issues into a story.

“You need to find examples of things that confirm what voters kind of suspected,” he said.

Busse’s approach is not revolutionary: class has long been a Democratic wedge. Obama deployed similar arguments in 2012, asking voters to consider if Mitt Romney would fight for people like them. Steve Bullock also gestured at questions of class and privilege when running against Gianforte in 2016, making pointed asides about access to public lands. But Busse is more explicit about class and wealth than most Democrats have been, and he does not shy away from casting judgment on his opponents’ motives. After telling a story about children losing their Medicaid coverage under Gianforte, he asks, “How f—ing evil is that?”

Busse’s bluntness is part of a broader strategy.

“I think so many times, candidates are like ‘well, geez, we don’t want to say anything bad,’” Busse said. “We don’t want to throw a punch. We don’t want to be tough. Bullshit. The nature of the state hangs in the balance. It’s up to me

to tell voters how weird and dangerous it is, and force the choice. Democrats are generally pretty poor at forcing choices. We show up with policy plans instead of telling voters exactly what is at stake.”

Most Montana politicos are skeptical that Busse’s approach will work, though.

“There’s no legitimate challenge against the governor,” Petersen said. “Busse is a ludicrous choice for opposition to Gianforte. Meat going into the grinder, that’s all Ryan Busse represents.”

Saldin was more polite, but no less dubious, about Busse’s chances. “The Busse campaign has an uphill climb,” he said. “Nationalization, the urban-rural divide, working class dynamics. All of those things have only increased in intensity over the last eight years, and they all push towards the Republicans,” referencing the amount of time since Democrats last won a race for governor in Montana.

While the property tax issue has the potential to be politically damaging, some are skeptical it will convince Republican voters to abandon Gianforte on Election

Day.

“I don’t know if that property tax discussion is going to be the first thing on people’s minds when they’re voting. Because it’s a presidential election, too. So they’re gonna be choosing between Biden and Trump. They make that calculation first, and then people usually just go right down the party ticket,” Bennion said. “More voters are interested in what party someone has behind their name.”

Others believe the problem with Busse’s campaign lies with the candidate him

self—that his criticism of the gun industry could be electoral poison in Montana. His nuanced position on the gun industry will not matter, they contend.

“He rose to prominence within the Democratic Party ranks by acting as an anti-gun representative,” Petersen said. “They’ll talk about him, you know, being a darling of the left’s anti-gun movement,” he continued. “Busse has no chance.”

So, is Busse’s class narrative strong enough to break through partisan loyalties and defeat Gianforte, or will his unorthodox background and a difficult political environment do him in?

Even if he fails, the results of Busse’s efforts may be instructive for Democrats. It’s hard to envision a Democratic statewide victory in Montana without the blue-collar base that has fled the party during the Trump era. If Busse runs well ahead of President Biden or even with Senator Tester, his straight-talking strategy might be worth emulating.

Untreated Wounds: The Quest to Restore the Rule of Law in Poland

BY **ALEXIA DOCHNAL**

Interviews with Gronkiewicz-Waltz, Matczak, and Tuleya were conducted in Polish; their remarks have been translated.

SUNDAY, OCTOBER 15, 2023 Sunday, October 15, 2023 marked a twist of fate for Poland's democracy. Citizens flooded voting stations to participate in the national parliamentary elections. Voter turnout reached its highest rate since the first Polish elections took place over a century ago. After eight years of rule, the nationalist and ultraconservative Law and Justice (PiS) Party failed to attain a majority in Parliament.

A new coalition government composed of three parties—Civic Platform, the largest opposition party, and the smaller New Left and Third Way parties—took power. Donald Tusk, the former President of the European Commission, became Prime Minister. Tusk has repeatedly stated that the chief goal of his government is to restore the rule of law in Poland following PiS' quest to seize control of the judiciary.

For Judge Igor Tuleya of the Warsaw

District Court, these elections signal a new stage in the fight that has engulfed Polish civil society for the past eight years.

"This past time deeply strengthened us lawyers and citizens, revealing that what does not kill us can only make us stronger," Tuleya said in an interview. "As a judge, I see that in the Polish judicial system, lots of work lies ahead of us and we need to prove ourselves capable of the same determination, patience, strength, and courage that we exhibited when defending the rule of law … I believe that a return to liberal democracy is possible."

Throughout its rule, PiS packed Poland's highest courts with judges favorable to the ruling party and subjected the judiciary to political control. PiS began by filling the Constitutional Tribunal, Poland's constitutional court, with PiS-allied judges. These reforms shattered the Tribunal's impartiality and international authority. In 2017, PiS issued laws that restricted the freedom of regional and national courts and altered the Supreme Court to make room for politically appointed judges.

The laws gave the Polish Parliament the right to appoint members of the National Council of the Judiciary, the body responsible for nominating Polish judges. This change in the Council's selection process violated legal standards and diminished the legitimacy of judicial appointments nationwide. PiS also established a series of measures that punished judges for exercising their rights.

When Tuleya publicly spoke out against the government's actions in 2017, PiS-allied prosecutors reported him to the "Disciplinary Chamber" of the Polish Supreme Court—a body established by PiS in 2019 to silence and suppress independent judges. The Chamber was repeatedly deemed an illegitimate court by the European Court of Human Rights and was dissolved in 2022.

The prosecutors claimed that Tuleya had wrongly disclosed information to unauthorized contacts when he allowed the media to record a trial that questioned the validity of a parliamentary vote put forward by a member of PiS. Legally, Tuleya had done nothing wrong. In accordance with the open court principle, judges have the right to request a public session of a trial.

The Chamber's verdict, however, suspended Tuleya from his profession for over two years and stripped him of judicial immunity. Tuleya was vilified by the state media, subjected to personal harassment, and thrust to the forefront of a public spectacle that garnered international attention.

In July 2023, the European Court of Human Rights and the European Court of Justice ruled that Tuleya's suspension by the Disciplinary Chamber violated the European Convention. In the words of Tuleya, these verdicts "confirmed all that we had been saying over the past several years: that judges have the right to participate in public debate, that they have the right to speak out on matters of rule of law, courts, and the constitution, and that it is their obligation to speak out publicly. Any act of repression against judges is a violation of the freedom of speech, of the free word."

Poland's coalition government now faces the new challenge of ensuring that all citizens have access to free and fair trials and to the same fundamental rights. The mission ahead is not simple. "It is much harder to rebuild the rule of law than protect it," Tuleya underscored.

"THIS WAS UNDOUBTEDLY a victory for the group to which I belong, Civic Platform," said Professor Hanna Beata Gronkiewicz-Waltz of Warsaw University, who previously served as the first female mayor of Warsaw, President of the National Bank of Poland, and as vice-president of the Civic Platform party. "After Donald Tusk's arrival I was very pleased that he wanted to fight, because it is not easy to fight with such populism and with such a lack of democratic solutions," Gronkiewicz-Waltz stated.

According to Gronkiewicz-Waltz, several factors underpinned the democratic opposition's victory. One factor, she noted, was Civic Platform's long-standing commitment to "the battle against nepotism, cronyism, and corruption" of the former regime. She added that "Tusk had a vision of returning to the European Union, and most Polish people are glad that we are in the EU." On a civic level, she argued that "it was a victory by the youth, because young people participated in elections at a much higher rate than they previously had." Almost 69% of citizens below the age of 30 voted in the October elections.

"This result signifies a return to normalcy, to good relations with the EU, to free courts, and to mechanisms that do not create large monopolies, to the market economy that we had been seeking to build from the start, since 1989," Gronkiewicz-Waltz claimed.

Wojciech Sadurski is the Challis Professor Jurisprudence at the University of Sydney and a prominent critic of PiS, who in recent years has faced criminal proceedings for criticizing the state-controlled television outlet. He echoed the sentiments of Gronkiewicz-Waltz. "I believe that Poland, a country about which I care a great deal, has chosen the only positive path it could have chosen on October 15—that is, the restoration of democracy," said Sadurski.

Any other outcome, according to Sadurski, would have cemented PiS' desire for authoritarian rule. "Every analysis of authoritarianism suggests that the third term, meaning the second consecutive re-election, means consolidation, and means that in the future it will be excessively difficult to vote democrats into power," he said.

For some, the result of the October elections was an astonishing phenomenon. Given PiS' control over public media outlets and its large-scale efforts to curtail its opponents' electoral campaigns, victory seemed elusive or even impossible.

"To me, what happened on October 15th was a miracle," said Marcin Matczak, a professor at Warsaw University's Faculty of Law and Administration and a member of the Group of Legal Experts at the Stefan Batory Foundation. "Nobody expected that voter turnout would be so high and that amidst such an inequality of forces, victory was still possible."

Over the past several years, the prospect of such a miracle happening often wavered. "There were many moments in which I no longer had hope that something would change because I know from analyses of history, law, and politics that the longer a regime like PiS holds power, the harder it is to win against them," Matczak said.

Gronkiewicz-Waltz, by contrast, described her confidence in Poland's democratic future as constant. "I had hope all along, I have to say, although maybe it was due to the fact that I am from the generation that lived under communism," she said. "Back then, one could not have hoped that the Soviet Union would collapse and that democracy would prevail in these Central and Eastern European countries."

Her hope, however, was not completely free of fear. "I was afraid, as I think most people were, that if there were a third term for the right-wing coalition, then we might not have been able to achieve that final moment," Gronkiewicz-Waltz stated.

While the recent elections mark a triumph of faith and aspiration, the path to change is far from linear. The new govern-

ment must undo the damage done by PiS in a pragmatic and lawful manner—two attributes that are hard to reconcile amidst the convoluted present reality of the Polish judicial system.

"We're not living in a perfect world, we're living in a real world where there are real dilemmas," said John Morijn, a law professor at the University of Groningen and a visiting fellow at the Princeton School of Public & International Affairs. "Part of the dilemma is that, even if your opponents have ruined the rule of law in very dramatic ways while you were in the opposition, you are now responsible for the rule of law."

The position of the new Minister of Justice, Adam Bodnar, exemplifies this complexity. Currently, Bodnar is both the Minister of Justice and the Prosecutor General. PiS merged the two roles in 2016 to boost their political control over the prosecutor's office. Morijn noted that in filling both functions, Bodnar's position constitutes "an illegal situation, or at least a highly problematic situation from the viewpoint of EU law."

While occupying both roles is incompatible with legal standards, it also grants Bodnar more power to repair the Polish prosecutor offices, which were prime victims of PiS' attacks on the legal system. Bodnar has asserted his determination to limit his own authority and expand that of the judiciary itself. Any choice that Bodnar makes in this situation carries a trade-off, revealing the inescapable arduousness of restoring the rule of law in today's Poland.

THE DILEMMAS facing the new government have fueled a nationwide debate regarding the best path towards restoring rule of law. The most prominent public disagreement emerged between Sadurski and Matczak, who support opposite strategies to free the Polish judiciary from political control.

Sadurski, the most vocal proponent of the radical standpoint, advocated for the complete extinguishing of the Constitutional Tribunal—Poland's constitutional court and the first target of PiS' attacks on the judiciary. He also argued for the removal of all the new judges who were appointed by the National Council of the Judiciary under PiS, since PiS' manipulation of the Council rendered its appointments unlawful.

"I believe that the Constitutional Tribunal as a whole, as an institution, has been contaminated by illegality," Sadurski argued. "It is both illegitimate and deeply immoral to let this group of people benefit from an unconstitutional state of affairs. The judges appointed or promoted by this new council [the National Council of the Judiciary] … should return to the places from which they benefited in having a politicized council for their personal advantage."

"I believe that the Constitutional Tribunal as a whole, as an institution, has been contaminated by illegality," Sadurski argued. "It is both illegitimate and deeply immoral to let this group of people benefit from an unconstitutional state of affairs."

Tuleya shared this standpoint, claiming that abiding by rigid interpretations of the law will not help in rebuilding Poland's democracy. Like Sadurski, he argued that unlawfully appointed judges have no place in a fair judicial system.

"The Constitutional Tribunal, which is staffed by the nominees of the former party, is treated as a cudgel for the current government. The Tribunal is releasing absurd verdicts that overstep its constitutional competencies," Tuleya stated. "The decisions of the Minister of Justice, Adam Bodnar, are questioned by rebels and bureaucrats of the former regime."

Tuleya criticized the new judges' deficient knowledge of the law and their questionable ethical standards, which clash with the fundamental trait that any judge must possess: "impeccable character." Though there is no specific definition for this attribute, Tuleya explained that "it means acting in an honest manner that is compatible with the rules of the profession and with a larger system of ethics."

According to the radical viewpoint, the brokenness of Poland's current legal system and the constant threat posed by politicized judges calls for a complete reversal of PiS' reforms. Opting for slow change amounts to complacency.

Gronkiewicz-Waltz supported this stance. "I am rather in favor of a bold revolution, because at a slow pace, nothing will be achieved," she said. "Three years will go by, everything will be put in order, and then the next elections will take place. Time does not allow us to do this. There has to be a certain kind of revolution, a controlled revolution—'controlled' meaning without breaches of the constitution."

Proponents of the moderate method, on the other hand, argue that judicial reforms should reflect strict adherence to the law. Matczak, a prominent supporter of the moderate strategy, believes that conducting disciplinary proceedings for certain judges would be more effective than expelling them altogether.

"While Professor Sadurski says that we should 'extinguish' the Constitutional Tribunal altogether, I say that we should

act in a way that does not make us prone to allegations of illegality," he argued.

Matczak contextualized his views in terms of a broader preference for prudent, gradual change over outright revolution. "When change is incremental, it is possible to evaluate the effectiveness of specific reforms, modify them, and change direction," he said. "But when one performs a 'slash' in the style of Alexander of Macedon, it might seem that the problem has been solved, if this has been done faultily then there is nothing left to do, the matter is over."

Matczak worked with the Batory Foundation, an independent organization dedicated to protecting democratic norms in Poland, to prepare a 250-page study evaluating what should be done with the Constitutional Tribunal and the Supreme Court. He seeks to make these institutions free from political control without setting poor precedents in the process.

"If we take shortcuts and make long-term changes based on political will, then if the other side ever comes back to power, it will take even further steps and launch a spiral of revanchism capable of destroying democracy," he stated.

Morijn agreed with this worry, arguing that the danger of radical reforms lies in their capacity to "completely delegitimize any notion of separation of powers" and "forever give the impression that all that matters is who's in charge of the executive."

In response to this criticism, supporters of the radical viewpoint assert that tailoring strategies to what might happen if PiS returns to power one day is limiting and counterproductive. PiS' eight-year rule demonstrated its readiness to violate the rule of law, regardless of the actions of previous governments.

"Let us not be paralyzed by the thought, 'Oh, but what if they [PiS] return?' I mean, we are right at the outset of a new parliamentary term of a very good government," Sadurski emphasized. "We must not let this paranoia paralyze us."

Another criticism of the radical standpoint, according to Morijn, is that expelling all unlawfully appointed judges would create confusion among citizens. Large-scale expulsion would obscure the validity of verdicts made by these judges in everyday matters like divorce or inheritance. Sadurski presented a simple response to this qualm: even though over a thousand judges of common courts were unlawfully appointed, their verdicts in civic matters like inheritance or divorce should stay intact for the sake of protecting citizens' rights, he said.

The debate that has emerged in recent months reveals an entanglement between the goals and sacrifices that accompany the quest for rule of law in Poland. Instead of sowing discord between the two sides, the debate reflects a shared commitment to mending the ruptures of the past eight years.

THE NEW GOVERNMENT has so far taken several key steps towards restoring free courts in Poland. The government began by implementing legislation to change the selection mechanism for the National Council of the Judiciary. The Constitutional Tribunal's verdicts are now accompanied by a proviso affirming that the Tribunal is not an impartial court as long as political appointees comprise it. The new government has also demonstrated its commitment to following the decisions of European courts, reiterating the duty of Polish courts to adhere to EU law and declaring that it will join the European Public Prosecutor's Office.

The Minister of Justice Adam Bodnar publicly stated that he is determined to replace all the politically appointed judges of the Constitutional Tribunal and implement several new pieces of legislation restoring the freedom of national courts. He also plans to pursue negotiations that will bolster Poland's rights in the EU.

Speaking from within the judiciary, Tuleya argued that "all the actions are definitely going in the right direction." While Bodnar is currently preoccupied

with reordering the prosecutor's offices, there have been signs of meaningful change in the judiciary itself. Bodnar has put forth a draft law regarding the National Council of the Judiciary, dismissed several court presidents, and removed disciplinary spokesmen who were unlawfully appointed by the former regime from several important proceedings, Tuleya said.

Yet the enduring influence of PiS continues to obstruct the quest for judicial reform. One instance of PiS interference occurred when Bodnar suspended the president of Warsaw's Court of Appeal, Piotr Schab—who also occupies the separate function of Disciplinary Spokesperson—for overreach of power. Immediately after this move, the Constitutional Tribunal issued an order of protection that put Bodnar's decision into question.

According to Tuleya, this response by the Tribunal was blatantly unlawful. "In order for the Tribunal, in accordance with our Polish regulations, to rule on the case of one individual person, this person must exhaust the judicial process by appearing before common courts, and only then may he or she submit a complaint to the Tribunal," he explained.

Although Schab had not appeared before any regular courts or submitted a complaint, the Tribunal jumped to his defense. This special treatment reveals that the Tribunal "undoubtedly acts on behalf of the former regime and… has completely lost all its authority, not only among lawyers but also among citizens," Tuleya argued.

The recent judicial reforms have otherwise elicited approval from observers on both sides of the debate, striking a balance between the radical and moderate standpoints. Gronkiewicz-Waltz claimed that "the reforms are going in the right direction, but the problem is that the situation has been ruined so badly [by PiS], that sometimes one has to, to use colloquial language, 'go all out.'"

Sadurski agreed, adding that he has "nothing but unqualified praise" for Bodnar and his deputy ministers but "wish[es] there was a stronger message" regarding the National Council of the Judiciary. The current bill regulates the Council's composition and selection process but does not explicitly refer to the status of the judges that comprise it.

Despite his opposition to the radical strategy, Matczak also supports the reforms' general direction. "I think that for now the reforms have been quite correct, in the sense that one can see that great care is being put into providing a legal justification for their actions," Matczak said. "Back then [under PiS], the legal foundations were completely lacking, and no one really cared about providing or explaining them. Now, Minister Bodnar presents very wide justifications for his actions."

Some of the government's actions, such as its liquidation of state media, have elicited allegations of illegality from critics aligned with PiS. Legal experts, however, argue that these accusations are unfounded. Morijn pointed to the hypocrisy of PiS' sudden appeals to legal standards. "It's a very difficult dilemma to have a group of politicians who did everything to undermine the rule of law for seven years, and then when they lose power, start making legalistic arguments," he noted.

These allegations spin narratives of illegality that gain popular attention while obscuring crucial details. Matczak argued that "PiS exploits the lack of specialized legal knowledge of Polish society and the fact that these questions are highly complicated." He added that as a lawyer, he "believe[s] that the government's actions specifically towards public media and the procurator's offices are legal."

Sadurski agreed. "I think that the minister in charge of media [Minister Sienkiewicz] … has done all the right things," he said. "He found a specific legal point by which to replace the executives of public media and then, in response to a very silly action by the President who failed to sign in a budget for public media, Minister Sienkiewicz decided to apply a bankruptcy and liquidation clause."

Despite the encouraging course of the early reforms, Morijn noted that judicial changes pose the danger of imposing a "collective punishment" on judges who might have the right qualifications but were "appointed in a way that was wrecked, that was beyond their own control."

Morijn proposed two ways of navigating this complication. One approach entails ensuring that the majority of judges in any Polish court are impartial, meaning that they were appointed in a lawful and apolitical manner before 2017. Another response is to "create a new, independent outside panel where judges could ask questions about compliance with European law, which is binding on Polish law anyway," Morijn said.

The judicial reforms have the potential to reshape Poland's relationship with the EU. The recent elections signify a radical softening of EU-Polish relations, given Tusk's close relationship with and the new government's general sympathy towards the EU. Over the past several years, the EU blocked Poland from receiving around $110 billion in funds due to its rule of law violations. Morijn predicted that there will be "some sort of conditional release of money simply as a sign of goodwill towards Tusk." Even so, releasing the entirety of the funds remains a distant goal.

Morijn explained that for Poland to unlock all of the money, it would have to pass legislation opposed by Andrzej Duda, who is a PiS ally and currently serving as the President of Poland. The EU's institutions would therefore have to release funds purely based on trust in the new government's promise to restore rule of law standards. Morijn noted that "the dramatic danger" of such a move is its potential to "undermine the credibility of the instruments of financial conditionality in the future."

Despite the new government's pro-European stance, a wholehearted and enduring rapprochement between Poland and the EU is far from guaranteed.

PROCLAIMING THAT A SINGLE miraculous moment has swept all threats to democracy in Poland aside is tempting. Dangers abound.

"When I, together with my generation, were building this democracy, we did not expect that the very people who emerged from the democratic opposition under communism would later be the people who do not recognize democracy, who have such a strong desire for power," Gronkiewicz-Waltz stated.

Poland's democracy cannot sustain itself without the engaged civil society from which it first drew breath. Rather than encouraging complacency, the new government's victory reinforces the necessity of both vigilance and idealism.

A heartening victory comes with its own set of worries.

"I am most worried that amidst this triumphalism of victory, people will think that the threat posed by populism is no longer there," Matczak said. "Unfortunately we now face a situation in Poland in which frustration and aggression towards the regime, towards PiS, towards politicians, is mixed with aggression and frustration towards the electorate of these parties … I am worried that we will be so focused on holding officials accountable that the government will forget that it needs to have a certain political offer for the electorate of PiS and for the conservative electorate."

Sadurski's main fear is that "the degree of polarization which was partly artificially engendered in Poland by populist rule" will continue to plague civil society. He stated that PiS, the other far-right movement in Poland, Confederation, and the Roman Catholic Church all have "strong vested interests" in maintaining polarization.

For Morijn, the key danger is an overreliance on the combative mindset that has pervaded the Polish opposition over the past eight years. "I think that fighting things, resisting things … requires sort of a radical and black-and-white mindset because things are going downhill." The restoration of democracy, by contrast, requires a vastly different approach, "because not only do you need to repair damage, you need to do it in such a way that actually respects the rule of law itself," Morijn said.

Holding faith in civil society and in the lessons that the democratic opposition has learned over the past decade helps mitigate these concerns.

Gronkiewicz-Waltz places her hope in the competence and experience of the new government. "I have hope that the experience that Donald Tusk gained from his functions in recent years will serve him to avoid mistakes. It's not possible to avoid mistakes altogether, but I hope that they will be minimized," she said.

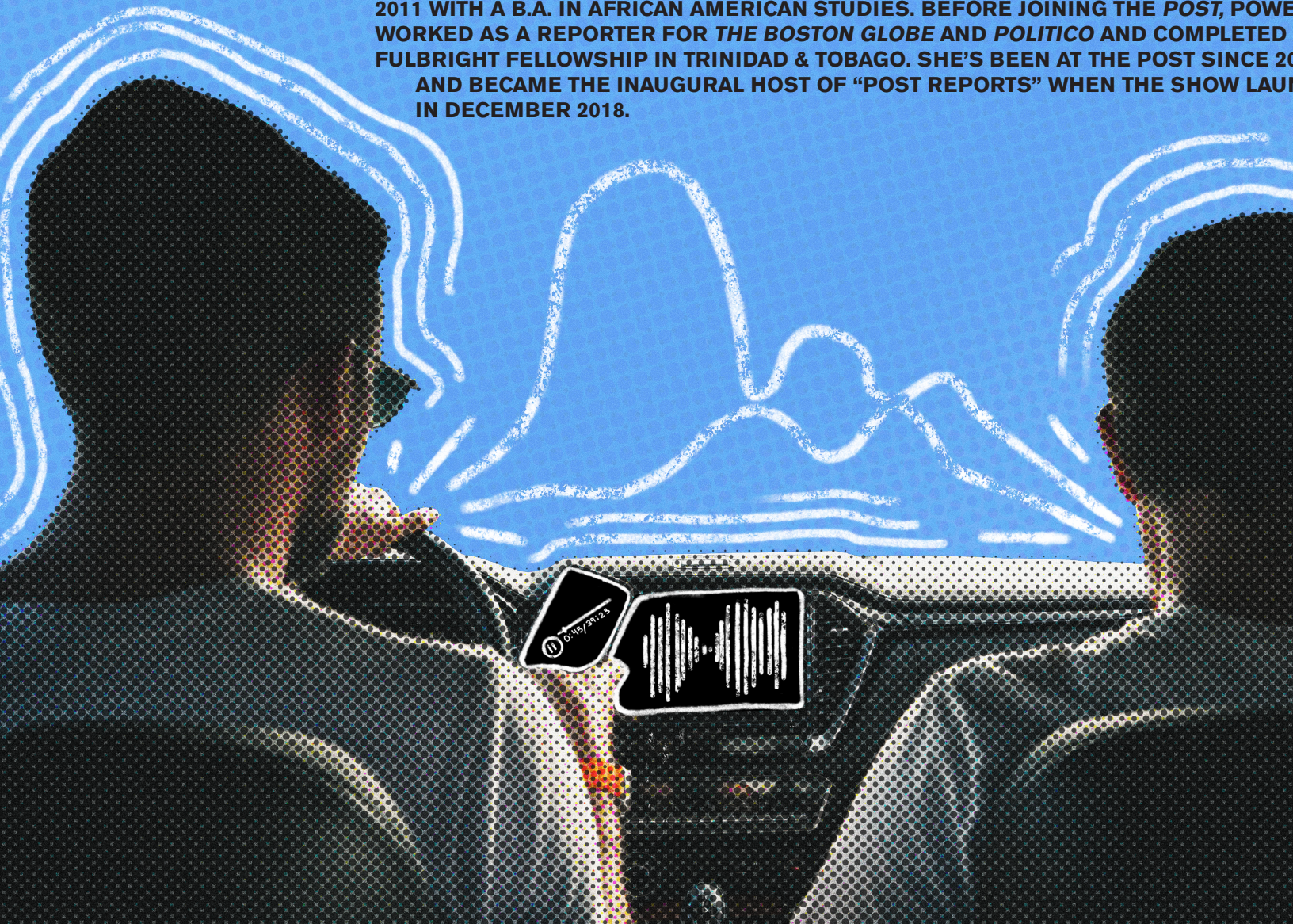
For Sadurski, hope is a product of democracy. "My hope… is that the next elections, starting with the presidential elections… will be much less a plebiscite about the shape of the state, and much more a rational choice among different policies," he said. "It will be like in any democracy, where the decision is not about existential choice, about democracy itself, but where democracy is taken for granted, where it is the only game in town."

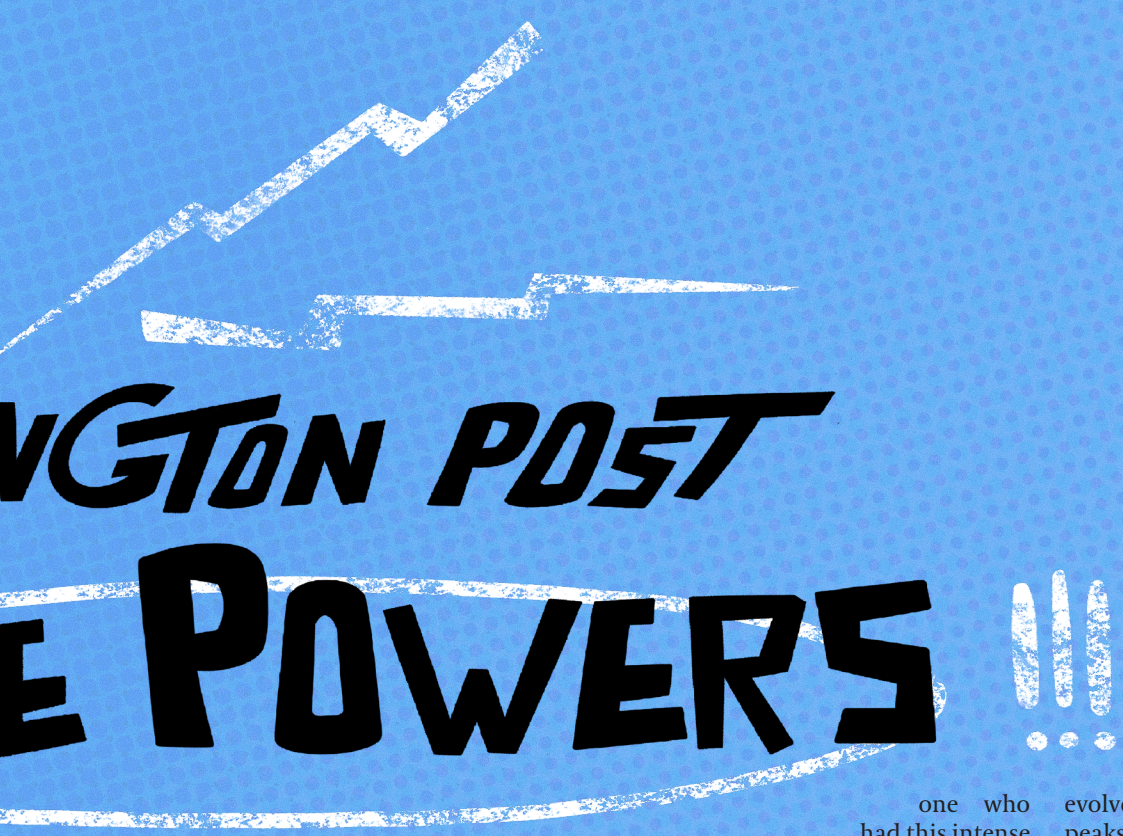
Poland's aspirations to restore lawful standards and civic freedoms remain fraught with unpredictability. Beyond the scars that the past eight years have left behind, they have also revealed that, in the words of Gronkiewicz-Waltz, "a turn away from democracy is always possible, in any state… there is nothing that cannot be broken."

ON THE AIR: AN INTERVIEW WITH WASHI PODCAST HOST MARTIN

BY **KATE REYNOLDS AND LEONIE WISOWATY**

MARTINE POWERS '11 IS THE SENIOR HOST OF "POST REPORTS," THE AWARD-WINNI DAILY NEWS PODCAST FROM *THE WASHINGTON POST*. SHE GRADUATED FROM YALE 2011 WITH A B.A. IN AFRICAN AMERICAN STUDIES. BEFORE JOINING THE *POST,* POWE WORKED AS A REPORTER FOR *THE BOSTON GLOBE* AND *POLITICO* AND COMPLETED FULBRIGHT FELLOWSHIP IN TRINIDAD & TOBAGO. SHE'S BEEN AT THE POST SINCE 20 AND BECAME THE INAUGURAL HOST OF "POST REPORTS" WHEN THE SHOW LAU IN DECEMBER 2018.





PODCASTING HAS REALLY EXPLODED SINCE YOU GRADUATED FROM YALE. HOW DID YOU END UP MOVING FROM TRADITIONAL REPORTING TO AUDITORY MEDIA?

I was interested in journalism since high school. When I got to college, I knew that I wanted to work for the *Yale Daily News*. I had seen *Gilmore Girls* and thought, this is the path for me. So I was originally focused on print journalism, in part because it felt like that was the only thing that was available to me, but also because I had a sense that I was an okay writer. When I thought about TV or radio news, I thought there was a certain type of presentation—a look and a sound—that you had to have, that I didn't feel like I had.

I learned a lot at the YDN about reporting and felt like that was my trial by fire. After college, I was a general assignment reporter for a couple of years at *The Boston Globe*. Every day I was sent out to cover a different story, oftentimes in the greater New England area. I would end up driving a lot of long distances to get to those assignments and because of that, I started listening to podcasts—episodes of This American Life, Radiolab, and other early storytelling podcasts that were becoming popular then.

I would listen as I was driving and I remember feeling this ache of wanting to make things that sounded like those podcasts. I felt like there was this gap between the story I was about to cover, where I was going to talk to someone who had this intense thing happen to them and would hear the emotion in their voice, but my job was to write it down and put it in the newspaper. I felt like there was something missing there. Whereas when I was spending this time in the car with these podcasts—it felt so much more intimate and intense to me.

It took me longer than it probably should have to think that maybe I should be trying to do that form of journalism. I got accepted to a program called Transom, where they train you on radio storytelling and more technical skills like how to collect tape, how to use a mic, and how to use audio-editing software.

Then I came to *The Washington Post* as a print reporter, covering the Metro section. From the get-go, I was like, if you're ever thinking you want to do more with audio, I'd love to be a part of it. I think I was noisy enough for long enough that by the time they were starting a daily podcast, they knew I had an interest in doing that.

WHAT IS HOSTING A PODCAST LIKE? MANY JOURNALISTS HAVE A REPORTING BEAT, WHEREAS YOUR JOB REQUIRES COVERING VARIOUS TOPICS AND SKIPPING FROM LOCAL TO INTERNATIONAL NEWS IN A MATTER OF HOURS. HOW HAS THIS AFFECTED HOW YOU RESEARCH AND REPORT?

I rely heavily on my experience being a beat reporter. Covering a beat really helps you understand how a story evolves over time. There are waves and peaks and crests of a story, where things come to an end or to a head. I learned how to make clear to readers or listeners what led up to this moment and how to give context with nuance.

The challenges of constantly jumping from one thing to another is the name of the game in this job. I have an enormous amount of help. We have a team of producers who talk to reporters, ask questions about their stories during pre-interviews to get a sense of what the reporter is working on, what they want to discuss, in an effort to make me better prepared, which I'm enormously appreciative of.

A lot of it is about tapping into my natural curiosity. I think it can feel hard in journalism—there is a sense of jadedness that can creep in, like, why are we hearing about this again? The battle is constantly pushing back against that and asking, what is the new thing here? What part of this surprised me? You need to come at stories with an attitude of openness, wanting to be surprised, and being willing to be challenged in your assumptions.

That's what I try to bring to the job. Most days, I hope I'm successful, but it's also just a lot of preparation. I've been pretty vigilant recently about trying to physically print out stories and engage with them on paper. Since we're always on our phones, it's just so easy to skim and be like, yeah, I read that—even if you just scrolled through. Reading more deeply and having the time to think about a story in a more substantive way makes a big difference in the quality of the interviews we do.

HOW DO YOU FEEL AUDITORY MEDIA AND REPORTING HAS CHANGED JOURNALISM?

That's a complicated question. As you know, radio has existed for decades. I think there's a bit of frustration from people who've been in this industry and made incredible work for decades that, all of a sudden, everyone decided one day that audio journalism was the thing. It has been a thing for a very long time.

At the same time, audio journalism from the past was primarily public radio, like NPR and its local affiliates. The fact that a lot more people can make audio in lots of different ways and places has been due to this real infusion of innovation and excitement about audio. But I think the thing that has always made radio great is still what people love about podcasts now. My dad was really into *Car Talk,* a show that used to be on NPR. The hosts were two brothers and they were just so funny. There was something about their natural back-and-forth and authentic relationship—they would laugh so loud, and not a polite laugh, but a real belly laugh. And that was just so fun to listen to.

I feel like that's what people love about podcasts now—the authenticity, the fact that you can get a real sense of people's personalities. When people really love a podcast, oftentimes it's because they feel like they have a relationship with the person who's telling the story. It's the host or the people who come on the show, where you develop a relationship with the person that you're hearing interviewed. I think it's that sense of feeling real humanity and understanding the world better through a conversation—like someone is having dinner at your house and explaining to you how the world works over soup or something. That is what's really powerful about audio and it's what has made it even more successful and widespread over the last few years.

PODCASTS ARE OFTEN CATERED TO A SUPER-BUSY, CONNECTED, 21ST-CENTURY LIFESTYLE. WHEN PEOPLE LISTEN TO A PODCAST WHEN COOKING OR RUNNING, THE MEDIUM RISKS BECOMING BACKGROUND NOISE. HAVE YOU FOUND THIS PROBLEMATIC? OR HOW DOES THIS CHANGE YOUR APPROACH TO CREATING PODCASTS?

I would push back very heavily on that, although I think it's a really good question. First of all, I think news has always been a form of multitasking, right? People used to watch the evening news while they were cooking or having dinner or doing other stuff. People have been listening to radio in the car since they put radios in cars. What really concerns me is if people internalize the news when they read it on their phones. The *Post* spends a lot of time thinking about how to reach people on their phones and how to interact with readers on TikTok and X and more. The reality is, people's attention spans have gone way down. For a person to engage with a written story for more than 90 seconds is a huge win. Whereas when we make a podcast, people listen for 20, 30, 40 minutes. We know from the data collected on podcasts that people are very likely to reach the end of an episode—which is not always true for written news.

So, yes, people are listening to podcasts when they're running or cooking or cleaning, but I don't know—I feel like that is really sacred brainspace. People aren't on their phones and they're out in the world doing something that doesn't require a lot of thought, so at the same time they're able to engage with our audio and the story we're telling. There are stories I've heard on a podcast—maybe from *This American Life* from 10, 15 years ago—where I can still remember where I was when I heard a certain part of the story. I can remember the street I was walking down or the bus I was on because it sticks out so much in my mind. So what makes me feel so lucky, making audio, is knowing we have much more engaged and focused time with our audience than a lot of other journalists on other platforms.

ONE OF THE THINGS THAT MAKES PODCASTS SO COMPELLING IS THE ABILITY TO INTEGRATE IN RECORDED AUDIO FROM THE EVENTS THAT YOU'RE COVERING. A RECENT *POST REPORTS* EPISODE ON THE HUMANITARIAN CRISIS IN RAFAH FEATURED CLIPS OF A SPEECH BY U.N. SECRETARY-GENERAL ANTÓNIO GUTERRES, FOR INSTANCE. HOW DO THOSE REAL-WORLD SOUNDS ENHANCE YOUR WORK? HOW DO YOU CHOOSE WHAT AUDIO TO INCLUDE OR LEAVE OUT?

The importance of using those kinds of clips is to give listeners an up-close experience with the news. We can describe a political candidate's speech or the scene of a conflict, but to hear it firsthand can really grab you.

In some of our stories, it really helps to hear what a person sounds like—so it depends on the story. A good example was our recent episode about the oral arguments in the Supreme Court case around Trump potentially being disqualified from running due to the 14th Amendment. Only recently has the Supreme Court made audio of its arguments public. You can talk about the justices, but hearing Justice Alito grill someone gives you a completely different understanding of who he is, what it's like to interact with him, what he might care about. I feel like the power of that story was both hearing these arguments about the constitutional question, and also actually hearing the justices and lawyers. It's tense and it's cringey at moments. And it's audio that people haven't gotten a chance to hear until recently.

HOW DO YOU NAVIGATE EDITING IN AUDITORY MEDIA? DO YOU THINK YOUR ETHICAL RESPONSIBILITY CHANGES WHEN YOU ARE EDITING AN AUDITORY PIECE RATHER THAN A WRITTEN PIECE?

I don't know if it's changed so much as intensified. It feels like the stakes are higher, and the focus is even sharper. There's a lot you can do in print that can have an effect on how your words are taken. It's not unique to audio that there are ways that you can frame quotes from people that can affect how they're received and understood. So just like with print editing, we focus a lot on questions like, is this the fairest way to present this? Are we making sure people know how this was intended?

We do have a rule of not editing the President. When we interview someone, we will probably cut out "likes" or "ums," but we don't do that with the President or other high-level officials, since hearing exactly how they say a sentence is super important. There is so much power in the editing process, and it's a huge responsibility. That's why we take editing so seriously.

DO YOU THINK YOU HAVE A PODCAST VOICE, AND DOES IT SOUND RADICALLY DIFFERENT FROM YOUR REGULAR SPEAKING VOICE?

I try not to have a podcast voice, but I probably do.

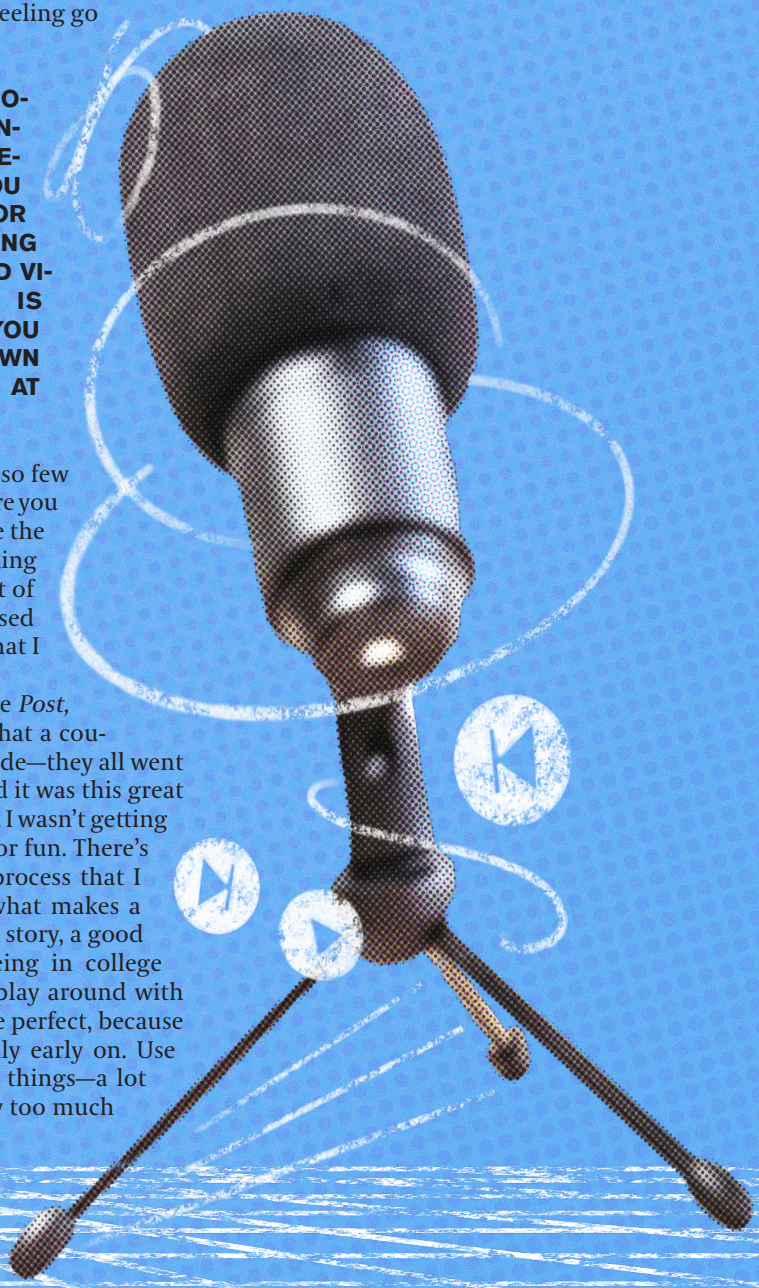
If someone's guest-hosting our show and I'm giving them tips on how to sound their best, I say that you want to sound like yourself, but a more elevated version of yourself. Oftentimes, I tell them to talk like how you would to your new partner's parents.

When I started this job, I had the experience that I think a lot of people have: I would listen to myself and think, 'oh, my God, that's what I sound like?' I like to call that audio vertigo, where you're blown away and sometimes horrified by the gap between how you sound in your head and how you sound in audio. That was really painful for several years, but that's kind of gone for me now. It's funny because now I listen to myself on audio, and that's the sound I hear in my head when I'm talking. I think it takes daily, radical, unvarnished exposure to your own voice over and over again to make that feeling go away.

WE HAVE A LOT OF PEOPLE AT *THE POLITIC* INTERESTED IN MULTIMEDIA PROJECTS. DO YOU HAVE ANY TIPS FOR STUDENTS STARTING OFF IN AUDITORY AND VISUAL JOURNALISM? IS THERE ANYTHING YOU WISH YOU HAD KNOWN WHEN YOU WERE AT YALE?

I feel like there are so few places in journalism where you have space to play. Maybe the biggest leaps in my learning were oftentimes born out of stories that were supposed to be playful, or things that I made for fun.

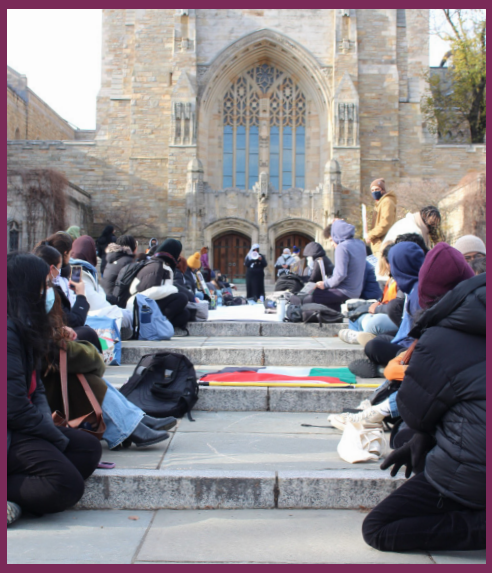
Before I came to the *Post,* I was editing a podcast that a couple of friends of mine made—they all went to Yale, too, actually—and it was this great podcast that I would edit. I wasn't getting paid, it was completely for fun. There's a ton I learned in that process that I use all the time about what makes a good interviewer, a good story, a good cut. So, leaning into being in college and the opportunity to play around with stuff. It doesn't have to be perfect, because nothing ever is, especially early on. Use this time to make weird things—a lot of things—and not worry too much about the things being great, but try out different types of interviews and audio. I wish I had that space again in my life. I think that's where the best learning comes from.



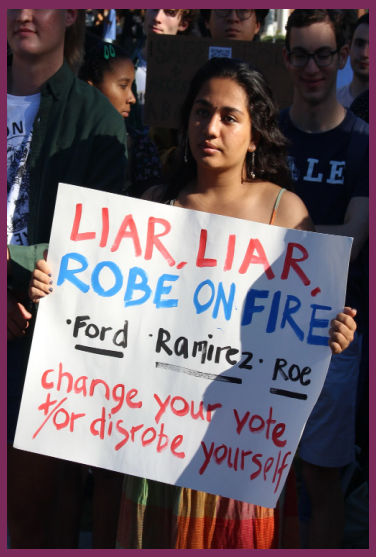
Demanding *Change*

BY **YASH ROY**

MY SENIOR YEAR OF HIGH SCHOOL, I led a thousand students to protest decisions made by our Board of Education over forcing immunocompromised teachers back to work and the lack of empathy from the district after an incident that stoked racial tensions in my hometown. So, one year later, I did not expect to find myself walking alongside Ben Crump, taking photos of him while furiously scribbling down the names of people in a more than 4,000-person protest against NHPD for paralyzing a Black man in their custody as a reporter.



MARCHING TWO MONTHS AFTER he was paralyzed, protestors walked from the Q House in Dixwell to NHPD, demanding accountability and changes in New Haven's policing system.



ON THE FOURTH ANNIVERSARY of the confirmation of Brett Kavanaugh, a Yale alumni, members of his class and reproductive rights groups on campus protested on Cross Campus, calling on the university to clarify its policies on access to reproductive care and gender-transitioning services.

WRITING FOR THE *Yale Daily News*, *New Haven Independent*, and *Connecticut Mirror*, I have covered protests more times than I count over the last three years. They are some of my favorite stories to write. I might not believe exactly what the people are saying, but the fact that people are willing to take time out of their day and raise their voices about something gives me hope. As a journalist, my motivation is simple: I want to shed light on issues and people who rarely see the light of day. While I'm not supposed to have an opinion on anything, I believe that the most important thing I can do as a "neutral caller of balls and strikes" is raise awareness so that people can demand change. So, it makes sense that I would love a good protest.

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